SUPERIOR COURT OF CALIFORNIA

CITY AND COUNTY OF SAN FRANCISCO

APPELLATE DIVISION

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
06/26/2024
Clerk of the Court
BY: DORA LOUIE
Deputy Clerk

People of the State of California, *Plaintiff and Respondent*, v. **Andrew Enriquez,** *Defendant and Appellant*.	No. APP-24-8800 Superior Court No. 22014337

EXHIBITS IN SUPPORT OF APPLICATION FOR STAY OF EXECUTION OF CUSTODY CONDITION, FINES AND FEES AND FOR BAIL PENDING APPEAL

Manohar Raju, Public Defender
Matt Gonzalez, Chief Attorney
Amy Tao, SBN 347273
Oliver Kroll, SBN 295333
oliver.kroll@sfgov.org
555 Seventh St
San Francisco, CA 94103
(415) 575 8831

Attorneys for Petitioner

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EXHIBIT A

Minute order (June 14, 2023)

San Francisco Criminal Court
Minute Order

Case Title	The People v. ENRIQUEZ	**Department**	Department 17
Case Number	CRI-22014337	**Judge**	Vedica Puri
Hearing Type	Pre-Trial Conference	**Hearing Date**	06-14-2023 09:00 AM
Clerk	S. Tam	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter		**Court Officer**	

Appearance ANDREW D ENRIQUEZ (Defendant) present.

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	12500(a) VC/M	Misdemeanor			Not Guilty	

Add Special Appearance SAFA LELE making special appearance for San Francisco District Attorney's Office.

Add Special Appearance AMY TAO making special appearance for San Francisco Public Defender's Office.

Record Waiver Defendant is advised of and does not waive their right to a speedy trial. The last day is 07/14/2023.

Hearing Case continued to 06/27/2023 9:00 AM in Department 17 for Jury Trial. Defendant is ordered to appear at the next hearing unless waived by PROOF OF 1 AA; LD 07-14-23

Hearing Status Status for This Hearing set to Occurred

EXHIBIT B

Minute order (July 14, 2023)

San Francisco Criminal Court
Minute Order

Case Title	The People v. ENRIQUEZ	**Department**	Department 17
Case Number	CRI-22014337	**Judge**	Brendan Conroy
Hearing Type	Jury Trial	**Hearing Date**	07-14-2023 09:00 AM
Clerk	I. Sanders	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter		**Court Officer**	

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	12500(a) VC/M	Misdemeanor			Not Guilty	

Text Defendant's appearance is waived today.

Add Special Appearance ASHLEY LEE making special appearance for San Francisco District Attorney's Office.

Add Special Appearance AMY TAO making special appearance for San Francisco Public Defender's Office.

Filing The Court finds good cause to continue the matter due to exceptional and extraordinary circumstances, under Federal, State and Local emergency proclamations and in consideration of public health due to the COVID-19 pandemic. Order signed and filed.

Hearing Case continued to 10/16/2023 9:00 AM in Department 17 for Jury Trial. Defendant is ordered to appear at the next court hearing unless proof of attendance at 1 AA meeting(s) per week is provided by their counsel.
LD 07/14/23 (GCCOVID)

Hearing Status Status for This Hearing set to Occurred

EXHIBIT C

Minute order (Dec. 1, 2023)

San Francisco Criminal Court
Minute Order

Case Title	The People v. ENRIQUEZ	**Department**	Department 17
Case Number	CRI-22014337	**Judge**	Christine Van Aken
Hearing Type	Jury Trial	**Hearing Date**	12-01-2023 09:00 AM
Clerk	I. Sanders	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter		**Court Officer**	

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	12500(a) VC/M	Misdemeanor			Not Guilty	

Text Defendant's appearance is waived today.

Add Party Special Appearance NICHOLAS MARQUEZ making special appearance for The People of the State of California's attorney of record.

Add Party Special Appearance AMY TAO making special appearance for ANDREW D ENRIQUEZ's attorney of record.

Filing The Court finds good cause to continue the matter due to exceptional and extraordinary circumstances, under Federal, State and Local emergency proclamations and in consideration of public health due to the COVID-19 pandemic. Order signed and filed.

Hearing Case continued to 01/02/2024 9:00 AM in Department 17 for Motion to Modify Release Conditions. Defendant's appearance is waived for the next hearing.

Hearing Case continued to 03/05/2024 9:00 AM in Department 17 for Jury Trial. Defendant is ordered to appear at the next court hearing unless proof of attendance at 1 AA meeting(s) per week is provided by their counsel.
LD 12/01/23 (GCCOVID)

Hearing Status Status for This Hearing set to Occurred

EXHIBIT D

Motion to Dismiss for Speedy Trial Violation

Manohar Raju
Public Defender
City and County of San Francisco
Matt Gonzalez
Chief Attorney
Amy Tao 347273
Deputy Public Defender
555 Seventh Street
San Francisco, CA 94103
Direct: (415) 915-9681
Main: (415) 553-1671
Email: amy.tao@sfgov.org

Attorneys for ANDREW ENRIQUEZ

E-MAILED
FEB 26 2024
By: .....

Superior Court of the State of California
County of San Francisco

People of the State of California, Plaintiff, vs. **ANDREW ENRIQUEZ,** Defendant.	Court No. 22014337 **Motion to Dismiss for Speedy Trial Violation (Pen. Code, § 1382)** Date: 03/05/2024 (TO SET) Time: 9:00 AM Dept.: 017

The defendant moves to dismiss the complaint on the ground that trial has been delayed without good cause beyond the speedy trial deadline established by Penal Code section 1382.[1]

Statement of Facts

1. Procedural history

On February 15, 2023, the defendant was arraigned on the misdemeanor complaint. The defendant pleaded not guilty. On June 14, 2023, the defendant asserted their speedy trial right. The Court set July 14, 2023 as the last day for trial.

[1] The exhibits to this motion are too voluminous to attach in paper form, but are available at **http://tinyurl.com/bdzekbuh**. A master CD will also be provided to the Court.

- On **June 27, 2023**, the Court continued defendant's trial to July 14, 2023, without citing a basis for continuing the matter to its last day.
- On **July 14, 2023**, the Court continued defendant's trial to October 16, 2023, citing the COVID good cause written order.
- On **October 16, 2023**, the Court continued defendant's trial to December 1, 2023. Both the court minutes and hearing date is missing from the Court's system. On October 23, 2023, the court clerks were notified via e-mail that the minutes are missing, and no response was provided. The jury trial date itself is no longer listed. It is unclear whether the Court provided any basis for continuing defendant's trial further past its last day.
- On **December 1, 2023**, the Court continued defendant's trial to March 5, 2024, citing the COVID good cause written order. No good cause last day was set.

2. Further background

A. All COVID-19 emergency orders have been rescinded

On June 15, 2021, the San Francisco health officer's "Safer Return Together" order came into effect.[2] The order hailed the success of San Francisco's vaccination campaign at containing COVID-19, rescinded the previous stay-at-home order, and lifted indoor capacity limits and social distancing requirements. In response, the trial court announced that it was returning to "pre-pandemic" levels of service on June 28, 2021.[3]

Effective April 30, 2022, the Chief Justice rescinded the remaining provisions of her statewide emergency orders.[4] Effective June 30, 2022, the Governor rescinded the remaining

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[2] **Exhibit 1**, S.F. Dept. of Public Health, Order of the Health Officer, no. C19-07y (June 11, 2021), also at <https://sfbos.org/sites/default/files/2021.07.08%20FINAL%20Health%20Officer%20Order%20No.%20C19-07y%20%28update%29.pdf>.

[3] **Exhibit 2**, San Francisco Superior Court, "San Francisco Superior Court to Expand Services, Update Health Guidelines Beginning Monday June 28" (June 25, 2021), also at <https://sf.courts.ca.gov/system/files?file=updated-court-service-expansion-release.pdf&1646297040001=>.

[4] California Courts Newroom, "California Chief Justice Rescinds Temporary Emergency Measures" (Mar. 3, 2022), at <https://newsroom.courts.ca.gov/news/california-chief-justice-rescinds-temporary-emergency-measures>.

provisions of his emergency order relating to the judiciary.[5] And in short order, most counties that had previously relied on local emergency orders to continue jury trials returned to normal operations. Since late 2022, no COVID-19 local emergency orders permitting 30-day extensions of jury trials have been issued.[6] Superior courts in San Francisco's peer counties returned to normal years ago.[7]

On February 28, 2023, the Governor terminated the COVID-19 state of emergency in California.[8] The San Francisco public health officer terminated the local health emergency declaration on the same date.[9] On April 10, 2023, the President approved a joint resolution terminating the national emergency relating the COVID-19 pandemic. (Pub. L. No. 118–3 (Apr. 10, 2023), 137 Stat. 6.) On May 5, 2023, the Director-General of the World Health Organization declared that COVID-19 "no longer constitutes a public health emergency of international concern,"[10] and announced that COVID-19 was therefore "over as a global health emergency."[11] On May 11, 2023, the federal public emergency relating to the COVID-19 pandemic lapsed without being renewed.[12] On June 14, 2023, the last statewide COVID-19 emergency order in effect in the United States expired.[13]

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[5] **Exhibit 3**, Governor's Exec. Order No. N–04–22, ¶ 17 [rescinding Exec. Order No. N–38–20, ¶¶ 1–5].

[6] **Exhibit 4**, California Courts Newsroom, "Court Emergency Orders," also at <https://newsroom.courts.ca.gov/covid-19-news-center/court-emergency-orders> [listing local emergency orders].

[7] **Exhibits 45–49**, declarations from public defenders in Contra Costa, Marin, Alameda, Sacramento and Los Angeles Counties.

[8] **Exhibit 5**, Governor's Proclamation (Feb. 28, 2023), also at <https://www.gov.ca.gov/wp-content/uploads/2023/02/COVID-SOE-Termination-Proclamation-2.28.23.pdf?emrc=1db54f>.

[9] **Exhibit 6**, S.F. Dept. of Public Health, Termination of Emergency Declaration (Feb. 28, 2023), also at <https://www.sf.gov/sites/default/files/2023-02/SF-COVID-19-PHE-termination.pdf>.

[10] **Exhibit 7**, World Health Organization, Statement on the fifteenth meeting of the IHR (2005) Emergency Committee on the COVID-19 pandemic (May 5, 2023), also at <https://www.who.int/news/item/05-05-2023-statement-on-the-fifteenth-meeting-of-the-international-health-regulations-(2005)-emergency-committee-regarding-the-coronavirus-disease-(covid-19)-pandemic>.

[11] **Exhibit 8**, United Nations, "WHO chief declares end to COVID-19 as a global health emergency" (May 5, 2023), also at <https://news.un.org/en/story/2023/05/1136367>.

[12] **Exhibit 9**, U.S. Dept. of Health and Human Services, "Fact Sheet: End of the COVID-19 Public Health Emergency" (May 9, 2023), also at <https://www.hhs.gov/about/news/2023/05/09/fact-sheet-end-of-the-covid-19-public-health-emergency.html>.

[13] See Ballotpedia, "State emergency health orders during the coronavirus (COVID-19) pandemic, 2021-2023", at <https://ballotpedia.org/State_emergency_health_orders_during_the_coronavirus_(COVID-19)_pandemic,_2021-2023#cite_note-117> [showing expiration of Texas COVID-19 emergency].

B. **The Court failed to use Civic Center to clear its backlog**

The Civic Center Courthouse contains twelve trial courtrooms, and has long served as an overflow courthouse for criminal trials. In 2018 and 2019, more than 160 misdemeanor trials were sent to Civic Center, and departments 220, 303, 305, 306, 318, 504, 505, 606, 608 and 624 each hosted multiple trials.[14]

Since 2020, the Court has refused to assign felony trials to Civic Center, citing security concerns. It did, however, permit "non-violent" out-of-custody misdemeanor trials to be held at Civic Center, and later broadened this rule to allow all out-of-custody misdemeanor trials to be heard there. Since the Hall of Justice was largely occupied with felony trials, Civic Center was perfectly placed to handle the Court's misdemeanor backlog.

But the Court did not take advantage of this opportunity. It sent only a slow trickle of misdemeanor trials to Civic Center. On 55% of the court days from July 1, 2021 until February 10, 2023, the Court's records showed no criminal trials taking place at all in Civic Center.[15] On 34% of the court days during that period, Civic Center was hosting only one criminal trial. On 10% of the court days, two criminal trials were being held there. And there were months-long periods during which Civic Center tried virtually no criminal cases.

In July 2021, Public Defender Mano Raju wrote to the presiding judge, detailing the problem and urging him to follow the example of the Riverside County Superior Court in *People v. Engram* and devote all civil departments to criminal jury trials.[16] The judge's reply read, in full: "Thank you for your correspondence of July 16, 2021 via email. Our court continues to make criminal trials assigned to the Civic Center Courthouse (CCC) a priority. As to your security concerns at CCC, please address the same to Sheriff Miyamoto."[17]

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[14] **Exhibit 10**, list of misdemeanor trials at Civic Center Courthouse, 2018–Mar. 2020.

[15] **Exhibit 11**, diagram showing number of Civic Center courtrooms in use for criminal trials, July 2021–Dec. 2023; see also **Exhibit 12**, criminal daily court status reports, June 28, 2021–Jan. 12, 2024. There were 400 court days between July 1, 2021 and February 10, 2023: on 220 days, there were no criminal trials at Civic Center; on 135 days, there was one trial; on 38 days, there were two trials; and no data was available for seven days.

[16] **Exhibit 13**, letter from Mano Raju to Judge Feng (July 16, 2021).

[17] **Exhibit 14**, letter from Judge Feng to Mano Raju (July 16, 2021).

On February 14, 2023, the Court set aside two Civic Center courtrooms—departments 514 and 624—for out-of-custody misdemeanor trials. For the rest of the year, out-of-custody misdemeanor trials were sent almost exclusively to these two departments, while other departments handled civil matters.[18] It was not until January 2024—two and a half years after the Court's full reopening—that Civic Center trial courtrooms were made generally available for misdemeanor cases.

In contrast to the one or two courtrooms handling criminal cases, the Court made numerous courtrooms available for its civil docket. In a January 2021 videoconference with members of the civil bar, the presiding judge announced: "Everyone is ready to go . . . So that makes it easier, as opposed to telling everyone we only have one courtroom. Are you kidding? No, we have all courtrooms. Everyone is available for jury trials and/or bench trials; we're all equipped for it. We're ready to go." The judge continued: "If you have a trial date, you better get ready for it . . . we're open for business, we're safe, we welcome everybody."[19] True to that promise, the Court handled a large volume of civil matters in the years that followed. Excluding small claims, probate and mental health cases, it held 180 civil trials in fiscal year 2020–21, of which 16 were jury trials; 369 civil trials in 2021–22, of which 49 were jury trials; and 401 civil trials in 2022–23, of which 52 were jury trials.[20] These cases were not limited to unlawful detainers and other urgent matters: as early as October 2021, the Court was regularly holding personal injury, contract/warranty, and quiet title trials, including jury trials, at Civic Center.[21]

The Court's daily status reports also show when criminal courtrooms were closed due to a staffing issue or COVID-19 exposure. Over two and a half years, just fifteen court days list

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[18] **Exhibit 15**, civil daily court status reports, July 3, 2023–Jan. 11, 2024.
[19] **Exhibit 16**, transcript of State of the Court Update Webinar (Jan. 29, 2021).
[20] **Exhibit 17**, 2024 Court Statistics Report, pp. 92, 94, also at <https://www.courts.ca.gov/documents/2024-Court-Statistics-Report.pdf>; **Exhibit 18**, 2023 Court Statistics Report, pp. 105, 107, also at <https://www.courts.ca.gov/documents/2023-Court-Statistics-Report.pdf>; **Exhibit 19**, 2022 Court Statistics Report, pp. 92, 94. also at <https://www.courts.ca.gov/documents/2022-Court-Statistics-Report.pdf>.
[21] **Exhibit 20**, civil daily court status reports, Sept. 23–Oct. 12, 2021; **Exhibit 21**, minute orders from civil trials; see also Exhibit 15.

"staff" or "staffing" as a reason for a dark day.[22] Even fewer list "COVID" as a reason for a dark day.[23] Finally, the Court keeps records of the reasons for judicial absences: since reopening, the vast majority have been for vacations ("VA") and official business ("OB"), with only a small fraction due to medical leave ("SP", "AM", "PM").[24]

The Court's underuse of Civic Center in the years after reopening drove the misdemeanor backlog. On October 13, 2021, there were just 98 no-time-waiver misdemeanor trials in the queue.[25] But as of January 2, 2024, there were 743 no-time-waiver misdemeanor trials—a seven-fold increase.[26] The backlog thus arose *after* COVID-19 restrictions were lifted. The oldest case in the queue had an original last day of July 6, 2022, more than a year after reopening; only 11% of the cases had original last days before 2023; more than half of the cases had original last days falling in July 2023 or later.[27]

C. A shortage of deputies is not to blame for the backlog

The Sheriff's Department was not responsible for the underuse of Civic Center. Even before the COVID-19 pandemic, it suffered from a chronic lack of staff and relied heavily on overtime to provide bailiff services.[28] But since 2020, Sheriff Miyamoto has made clear that, despite staffing challenges, his department was ready and willing to accommodate the Court's security needs.

In 2021, the Sheriff executed a contract with the Superior Court under which it agreed to provide a sergeant and twenty-two deputies to staff Civic Center, including one dedicated to criminal matters and four "floaters". It also promised to "provide additional staffing" at Civic Center when necessary to try in-custody criminal cases.[29]

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[22] Exhibit 12, pp. 1211, 1212, 1213, 1217, 1302, 1310, 1333, 1714, 2646, 2650, 3650, 3676, 3701, 3755, 3763.
[23] Exhibit 12, pp. 1323, 1331, 1355, 1363, 1380, 1764, 1776, 1788.
[24] **Exhibit 44,** judicial leave calendar and key.
[25] **Exhibit 22**, misdemeanor trial list, Oct. 13, 2021.
[26] **Exhibit 23**, misdemeanor trial list, Jan. 2, 2024.
[27] *Ibid.*
[28] **Exhibit 24**, S.F. Office of the Controller, *Key Strategies Could Help the Sheriff Reduce Its Heavy Reliance on Overtime and Better Communicate Its Staffing Needs* (June 19, 2019), pp. 28–29, also at <https://sfcontroller.org/sites/default/files/Documents/Auditing/SHF%20-Sheriff%20Staffing%20Report%2006.19.19_0.pdf>.

[29] **Exhibit 25**, Letter of Agreement for Court Security Services.

On December 7, 2021, the Board of Supervisors voted to permit the Sheriff to provide "supplemental law enforcement services" to retail stores in order to combat shoplifting.[30] One supervisor cited the trial backlog, and expressed concern that it would make it harder to use mandatory overtime to "hold criminal trials at the civil courthouse" if "sheriffs are spending their time guarding Walgreens."[31] The Sheriff acknowledged the supervisor's concern "about the courts and our ability to support the courts if they were to open or plan for the opening of additional trial courtrooms, *which we are always prepared to do.*"[32] He went on: "Absent the reference to the fact that we are understaffed currently, *it's our obligation when tasked with something to make sure that we reallocate resources and use what we do have to fulfill that obligation.*"[33]

The supervisor then asked whether the Sheriff had sufficient staff to implement a plan to hold trials at the Civic Center Courthouse. The Sheriff replied: "I'm basically saying two things here. One, I'm asking to be supported in hiring, recruiting and retention of people to come up to the levels that we are supposed to be staffed, but in the absence of that, we still work with what we have to get the job done. *[S]o if we're asked by anybody, whether it's the courts or the Board or City Hall or anybody else, or Department of Public Health, then we make it work with what we have.*"[34]

On March 3, 2023, the Sheriff appeared before the Sheriff's Department Oversight Board. In the course of a discussion about court security, he noted that, that day, he had to rellocate multiple deputies from the jail to act as bailiffs. But he emphasized: "*One thing I can say as the Sheriff is, I have never said no to the courts when they have asked us to open a courtroom.* So

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[30] S.F. Ord. No. 221–21; **Exhibit 26**, Mallory Moench, "In S.F. push against retail theft, stores can now hire off-duty sheriff's deputies," *San Francisco Chronicle* (Dec. 7, 2021), at <https://www.sfchronicle.com/sf/article/In-S-F-push-against-retail-theft-off-duty-16683168.php">.
[31] S.F. Bd. of Supervisors, Regular Meeting (Dec. 7, 2021), at 47:20, at <https://sanfrancisco.granicus.com/player/clip/40028?view_id=10&redirect=true>.
[32] *Id.* at 1:01:04.
[33] *Id.* at 1:01:21.
[34] *Id.* at 1:08:10.

there are others who make those decisions, but any time a decision made is we are there to support regardless of the staffing level and make sure we have the staff to support it."[35]

In June 2023, the Sheriff announced that he was deploying an "emergency team" of 130 deputies to carry out street-level drug arrests.[36] A Sheriff's Department representative stated that deputies "were being pulled from other divisions on overtime" to staff the effort.[37] In October 2023, the Controller reported that the Sheriff had already "nearly depleted" its overtime budget for the fiscal year, in part because of the emergency drug enforcement plan.[38]

In response to an October 12, 2023 inquiry by the Public Defender's office, the Sheriff's Department reported that zero Civic Center deputies had been off duty due to COVID-19 during the previous month.[39] It also indicated that it had no record of communications with the Court since July 2023 about opening additional courtrooms.[40]

D. Department 17's irregular calendaring practices and failure to enforce sections 1050 and 1382 drove the backlog

The backlog was worsened by the Court's failure to enforce sections 1050 and 1382 in its misdemeanor calendar department. The Court routinely delayed cases past their statutory deadline for months on its own motion based on courtroom unavailability, without observing any of section 1050's procedural requirements, and without even asking the parties about their readiness.[41] In early 2023, it would use a boilerplate "good cause" order, which it would file in bulk at the end of calendar without notice to the parties; later, it would simply declare that "good cause" existed without specifying what the reason for the delay was. It also frequently continued cases when the assigned district attorney was unavailable, in the absence of any motion to

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[35] S.F. Sheriff's Dept. Oversight Bd., Meeting (Mar. 3, 2023), at 2:20:39, at <https://sanfrancisco.granicus.com/player/clip/43123?view_id=223&redirect=true>.
[36] **Exhibit 27**, Mallory Moench, "S.F. sheriff sent an emergency team to tackle open-air drug markets. Here's what it's done," *San Francisco Chronicle* (July 8, 2023), also available at <https://www.sfchronicle.com/sf/article/sf-drug-crisis-fentanyl-sheriff-dealers-users-18187960.php>.
[37] *Ibid.*
[38] **Exhibit 28**, J.D. Morris, "'Extremely unusual': S.F. Sheriff's Office spent majority of its overtime budget in 3 months," *San Francisco Chronicle* (Oct. 20, 2023), also at < https://www.sfchronicle.com/sf/article/sheriff-office-overtime-budget-18434523.php#>.
[39] **Exhibit 29**, response to public records request.
[40] *Ibid.*
[41] See **Exhibits 30–39**, transcripts of continuances with no inquiry as to readiness.

continue, and even in cases which did not qualify for vertical prosecution under section 1050(g); sometimes, it even continued cases when the District Attorney admitted that it was not ready and had not prepared for trial.[42] Had it sent out or dismissed these cases, as the law requires, its backlog would not have exploded in the way that it did. As this Court has recently seen, dismissals often result from the pressure of an impending jury trial.[43] But for years, department 17 took the pressure off with its blanket trial continuances.

Memorandum of Points and Authorities

1. The prosecution has the burden of justifying the trial delay

Section 1382 requires that a misdemeanor case be dismissed unless it is tried within 45 days of an out-of-custody arraignment, or 30 days of an in-custody arraignment or withdrawal of a time waiver, unless "good cause" is shown for a delay. (§ 1382, subd. (a)(3).) This statute interprets and supplements the state constitution's speedy trial guarantee. (*People v. Martinez* (2000) 22 Cal.4th 750, 766.) It "constitutes [. . .] a legislative determination that a trial delayed more than [the statutory period] is prima facie in violation of a defendant's constitutional right." (*Sykes v. Superior Court* (1973) 9 Cal.3d 83, 89.) No showing of prejudice is needed: even one day of unexcused delay entitles the defendant to a dismissal. (*Martinez*, p. 766; *People v. Hajjaj* (2010) 50 Cal.4th 1184, 1204.)

Chronic congestion—"the excuse that there are too many cases and a shortage of judges to try them"—does not, in general, justify delaying a trial. (*People v. Gopal* (1985) 171 Cal.App.3d 524, 545–546 [citing *Rhinehart v. Municipal Court* (1984) 35 Cal.3d 772, 781–782].) That is because courts have a duty to organize their departments so that criminal cases can be tried in a timely manner. (*Gopal*, p. 545; *People v. Engram* (2010) 50 Cal.4th 1131, 1156.) There is a

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[42] See **Exhibit 40** [court continues DUI trial past last day for "public safety" reasons, despite describing DA's reasons for lack of readiness as "nonsense"], **Exhibit 41** [court continues trial past last day despite DA admitting lack of readiness and failure to obtain bodyworn camera footage], **Exhibit 42** [court continues trial because of prosecutor's unavailability in non-domestic-violence case]; **Exhibit 43** [court continues trial because of prosecutor's unavailability in non-domestic-violence case].

[43] Jonah Lamb, "Case dismissed: Hundreds of San Francisco criminal cases stalled for years by Covid", *San Francisco Standard* (Feb. 20, 2023), at <https://sfstandard.com/2024/02/19/san-francisco-courts-backlog-dismissal/>.

narrow exception to this rule: good cause may be found when the congestion is due to "exceptional circumstances," judges have given "exclusive attention to criminal matters," and the Judicial Council "is unable to offer assistance." (*Gopal*, p. 546; see *Rhinehart*, p. 782, fn. 17 [delay may be excusable when "certain unique, nonrecurring events have produced an inordinate number of cases for court disposition"].)

But it is the prosecution, not the Court, that bears the burden of showing that exceptional circumstances existed. (*Gopal*, p. 546.) That is true even when the continuance was on the Court's own motion. (*Ibid.*; *People v. Santamaria* (1991) 229 Cal.App.3d 269, 277; *People v. Hajjaj* (2010) 50 Cal.4th 1184, 1197.) Thus, if the prosecution declines to defend the continuance, the Court may not step into the breach and assemble evidence to support its own decision after the fact. Rather, it is limited to considering "information the parties timely provide." (*Mendez v. Superior Court* (2008) 162 Cal.App.4th 827, 837.)[44]

2. There were no "exceptional circumstances" justifying a trial delay

No exceptional circumstances justified the delay here. A court cannot "turn to the pandemic and perpetually cite exceptional circumstances to avoid dismissal under section 1382." (*Hernandez-Valenzuela v. Superior Court* (2022) 75 Cal.App.5th 1108, 1135.) That is especially true here, since the Court's underuse of Civic Center courtrooms and improper blanket continuances caused the misdemeanor backlog to explode—from less than 100 cases to over 700 cases—even after all public health restrictions had been lifted.

A. COVID-19 cannot justify trial delays long after emergency orders have been rescinded

[44] Unless a law provides otherwise, judicial officers may not "independently investigate facts in a proceeding," and are required to "consider only the evidence presented or facts that may be properly judicially noticed." (Cal. Code Jud. Ethics, canon 3B(7)(a).) Although consultation with other judges and court staff is proper, such consultation must not include "receiving factual information that is not part of the record or an evaluation of that factual information." (*Ibid.*) Moreover, judges with "personal knowledge of disputed evidentiary facts concerning the proceeding" must recuse themselves (Code Civ. Proc., § 170.1, subd. (a)(1)(A)): it follows that judges may not obtain or rely on such non-record evidence. These rules mean that the Court may not itself inquire into the facts of how Civic Center was used or how the Sheriff responded to COVID-19—issues which are not subject to judicial notice (see Evid. Code, § 452)—but must rely on the evidence submitted by the parties. That rule applies with special force here, where the Court's own management decisions are in question.

By definition, an "emergency" cannot last forever. It has now been more than four years since COVID-19 was detected, thirty-one months since this Court's reopening in June 2021, and one year since both California and San Francisco rescinded all COVID-19 emergency orders. It is high time to acknowledge that the Court's misdemeanor backlog—the vast majority of which was racked up *after* reopening—has become a chronic condition.

Hernandez-Valenzuela provides a useful contrast. (*Hernandez-Valenzuela*, *supra*, 75 Cal.App.5th 1108.) There, the Court of Appeal dealt with continuances of in-custody felony trials in August and September 2021, just weeks after reopening. (*Id.* at p. 1131.) It held that exceptional circumstances justified the delay, relying on the following factors: **(1)** the Governor's state of emergency was still in place, and government entities were still subject to public health orders (*id.* at p. 1129); **(2)** courtrooms had only been open for a few weeks, short of the "years-long congestion" that the Supreme Court had recognized as a "chronic condition" in *Engram*, and it was not reasonable to expect the Court to have dealt with its backlog within such a short time (*id.* at pp. 1128, 1131); **(3)** the majority of the cases in the backlog had last days which fell during the 15-month period of heavy courtroom restrictions (*id.* at p. 1130); **(4)** although not many felony cases had been tried, there was evidence that hundreds had been "advanced" in an effort to send them out (*id.* at pp. 1131–1132).

Every one of the factors relied on by *Hernandez-Valenzuela* has flipped, and now cuts against a finding of exceptional circumstances. **(1)** Judicial emergency orders were lifted in 2022, and all local and state emergency orders were rescinded almost a year ago. That reflects the judgment of state and local authorities that, in early 2023, COVID-19 had evolved from a "crisis emergency" into a "manageable situation," and that, unlike in 2021, government bodies no longer need emergency help to sustain their normal operations.[45] **(2)** It has now been years since the Court's full reopening. The chronic misdemeanor backlog can no longer be excused as a temporary, exceptional condition as the Court emerged from lockdown. **(3)** The entirety of the misdemeanor backlog arose more than a year after reopening, and most of it dates from July

[45] <https://www.gov.ca.gov/2022/10/17/governor-newsom-to-end-the-covid-19-state-of-emergency/>

2023 or later; it is not a hangover from COVID-19 restrictions, as in *Hernandez-Valenzuela*, but instead increased sevenfold after the Court failed to cope with congestion in the years that followed. **(4)** Far from "advancing" hundreds of trials, the Court improperly *continued* hundreds of trials for months without observing section 1050's procedural requirements, often without even inquiring about readiness, and sometimes to accommodate the prosecution's unreadiness or unavailability in non-domestic-violence cases.

To be sure, COVID-19 has not vanished. The Governor acknowledged as much when he rescinded the state of emergency. But the mere existence of an infectious disease does not establish blanket good cause for continuances: instead, the prosecution must show "a nexus between the conditions created by the pandemic and the purported need to delay the hearing." (*Bullock v. Superior Court* (2020) 51 Cal.App.5th 134, 154.) In *Bullock*, the trial court found that the impact of COVID-19 pandemic on court operations constituted good cause to continue a preliminary hearing past the 15-day deadline for dismissal or release under Penal Code section 859b. (*Id.* at p. 139.) The Court of Appeal held that the trial court abused its discretion, since it failed to explain *how* the pandemic made it impossible to use one of its courtrooms to safely hold the preliminary hearing, especially in light of the Court's use of an open department for "urgent issues such as in-custody arraignments." (*Id.* at pp. 153–154.) The abuse of discretion is all the more evident here: COVID-19 has not stopped the Court from devoting its resources to *non-urgent* civil proceedings, such as slip-and-fall cases and insurance disputes, and it cannot excuse the Court's failure to send criminal cases to trial. (See *Gopal*, *supra*, 171 Cal.App.3d at p. 546 [good cause requires showing that judges have given "exclusive attention to criminal matters"].)

San Francisco is the only trial court in the state that is still citing COVID-19 as good cause for blanket continuances. And we are unaware of any other government institution in the country still using the pandemic as an excuse to deny a critical, time-sensitive public service. Four years on, there is no valid reason for this Court to hold itself to a different standard. "Exceptional circumstances" did not justify a continuance here.

B. **The Court's years-long failure to utilize Civic Center undercuts any good cause finding**

The Court has suggested that the need to prioritize felony cases after reopening justified delaying misdemeanor trials. That is incorrect for two reasons.

First, section 1048 simply establishes a presumptive order in which the Court should dispose of cases on its "calendar." It does not sanction disregarding the speedy trial rights of misdemeanor defendants whenever the felony docket is congested. Nor does it disapply the rule that chronic congestion cannot amount to good cause. If COVID-19 is no longer an "exceptional circumstance"—as it plainly is not, four years on—section 1048 cannot come to the rescue.

Second, and more importantly, the felonies-first rationale fails because it is unsupported by the facts. After reopening, the Court insisted that felonies and in-custody trials could not be sent to Civic Center. That courthouse was thus ideally positioned to serve as an overflow venue for trying a large number of DUIs and other low-security misdemeanor cases, as it had done in the past. Indeed, repurposing civil courtrooms was the only way to solve a backlog of the size that San Francisco confronted. The Public Defender urged the Court to follow the example set by the Riverside County Superior Court in *People v. Engram* by filling its civil courthouse with criminal trials.

But the Court squandered this opportunity. For a year and a half, it wasted most court days at Civic Center by not holding any criminal jury trials at all; when it did send trials there, usually only one courtroom was used. It only opened two misdemeanor courtrooms in February 2023. And it was not until January 2024 that it fully opened Civic Center for misdemeanor trials, resulting in a rapid diminution of the backlog. If the Court had done this a year ago, it would not be in this predicament. Contrast that to the hundreds of civil trials, including more than a hundred civil *jury* trials, the Court has held since reopening—each one tying up a judge and court clerk—and the many civil courtrooms that sat empty each day, including on the days that this case was continued. This extreme underuse cannot be blamed on a heavy felony docket.

Nor can it be blamed on staff shortages. The Sheriff repeatedly informed City officials that he was standing ready to open additional courtrooms, regardless of staffing issues, and that he

had "never said no" to any such request—implying, astonishingly, that the Court had never asked him to open all available Civic Center courtrooms until January 2024. If the Sheriff could find 130 deputies to surge drug enforcement in the Tenderloin, and still more to fight shoplifting at Walgreens, he certainly could have detailed five or ten deputies to crank out low-security misdemeanor trials at Civic Center. Court reporters are not needed for misdemeanor trials, and there were clearly enough judges and court clerks to try a large volume of civil cases.

C. **The stale "good cause" order does not change the analysis**

At an earlier calling of the case, the Court issued a boilerplate "good cause" order. This order does not alter the facts. And for several reasons, it does not alter the legal analysis.

First, the order is stale. It was entered long ago, and other continuances have intervened. The Court cannot simply assume without evidence that its good cause finding carries across to subsequent trial delays, or that the facts it contained were still applicable.

Second, the order is itself unsupported by evidence. It purports to judicially notice a large number of items, including long-rescinded emergency orders, unspecified "court orders," the Court's "facilities" and "operating procedures," and the "findings supporting good cause" in a depublished appellate case. But "facilities" and "procedures" are not subject to notice. (See Evid. Code, §§ 451, 452.) And although a court may notice the *existence* of court and executive orders, it may not notice the *truth* of statements they contain. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113–114; accord *Barri v. Workers' Comp Appeals Bd.* (2018) 28 Cal.App.5th 428, 437 [improper to rely on judicial notice to prove disputed facts].) Also, by only taking judicial notice in a written order issued *after* the own-motion continuance had been granted, the Court deprived the parties of their entitlement to object and offer countervailing evidence. (Evid. Code, § 455; *People v. Banda* (2018) 26 Cal.App.5th 349, 360–361.) Had this opportunity been given, the defendant would have objected—and does now object—to the proposed judicial notice.

Third, the order contains a lengthy recitation of disputed facts about deputy and "judicial staff member" absences with no indication of where the information comes from. If it is sourced from the personal knowledge of judicial administrators, it was improperly included. (See Code

Civ. Proc., § 170.1, subd. (a)(1)(A).) If it comes from second-hand reports by court staff and outside agencies, it is inadmissible hearsay. And it contradicts the Court's records of daily operations at the Hall of Justice Civic Center, which show numerous departments handling civil trials; the Court's records of the reasons for judicial absences; and the Sheriff's own statements about his ability to staff courtrooms. At the very least, these records raise a sufficient dispute about alleged staffing problems to forbid judicial notice. Furthermore, the reference to "judicial staff members" is ambiguous: it could apply to court reporters, who are not needed for misdemeanor trials.

3. The length of the continuances was excessive

Finally, the continuances were unjustified because their length was excessive in two respects. *First*, a continuance can only be granted "for that period of time shown to be necessary by the evidence considered at the hearing on the motion." (§ 1050, subd. (i); accord *People v. Sutton* (2010) 115 Cal.App.4th 533, 546 ["length" of delay relevant to whether good cause existed].) Here, of course, the temporary unavailability of courtrooms was not good cause: but even if it was, it could have justified one or two days' delay at the most, not months. *Second*, the Court improperly added a ten-day grace period to the last day. But this grace period is only applicable if the defendant requests or consent to the delay. (§ 1382, subds. (a)(2)(B), (a)(3)(B).) If the defendant objects, there is no grace period, and the date to which trial is continued "is the day trial *must* begin, assuming defense counsel announces 'ready' and good cause does not exist to justify a *further* delay." (*People v. Superior Court* (*Alexander*) (1995) 31 Cal.App.4th 1119, 1131.)

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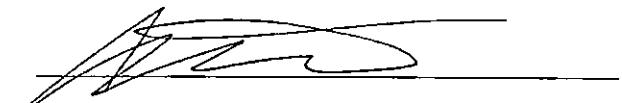
Conclusion

For these reasons, the case should be dismissed.

Dated: 2/26/2024

Respectfully submitted.

Manohar Raju
Matt Gonzalez



Amy Tao
Attorneys for Defendant

Proof of Service

I say:

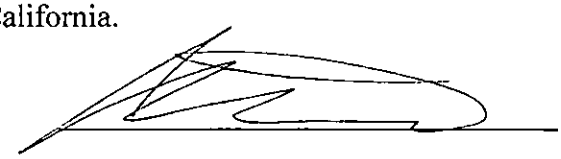
I am over eighteen years of age and not a party to the above action. My business address is 555 Seventh Street, San Francisco, California 94103.

I, Amy Tao, served copies of the attached on the following:

San Francisco District Attorney Elliott Brooks
350 Rhode Island Street
North Building, Suite 400N
San Francisco, CA 94103

I declare under penalty of perjury that the foregoing is true and correct.

Executed on 2/26/2024 in San Francisco, California.



Amy Tao

EXHIBIT E

Minute order (Mar. 5, 2024)

San Francisco Criminal Court
Minute Order

Case Title	The People v. ENRIQUEZ	**Department**	Department 17
Case Number	CRI-22014337	**Judge**	Victor Hwang
Hearing Type	Jury Trial	**Hearing Date**	03-05-2024 09:00 AM
Clerk	S. Tam	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter		**Court Officer**	

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	12500(a) VC/M	Misdemeanor			Not Guilty	

Add Representation Special Appearance	ZAIN MUSTAFA QAZI making special appearance for San Francisco District Attorney's Office.
Add Representation Special Appearance	ZACHARY WATERMAN making special appearance for San Francisco Public Defender's Office.
Text	Defendant is not present, but is on a 2 hour standby. LD 07-14-23 (GCLD 12/01/23 COVID)
Filing	Filed Motion to Continue submitted by The People of the State of California.
Text	The Court finds good cause to 04-03-24
Outcome	Motion - Motion to Continue is Granted.
Hearing	Case continued to 04/03/2024 9:00 AM in Department 17 for Jury Trial. Defendant is placed on 1 hour telephone standby. LD 07-14-23 (GCLD 04-03-24)
Hearing Status	Status for This Hearing set to Occurred
Add Hearing Outcome	Outcome(s) of the current hearing recorded as Motion Granted.

EXHIBIT F

Supplemental Motion to Dismiss for Speedy Trial Violation

Manohar Raju
Public Defender
City and County of San Francisco
Matt Gonzalez
Chief Attorney
Amy Tao 347273
Deputy Public Defender
555 Seventh Street
San Francisco, CA 94103
Direct: (415) 915-9681
Main: (415) 553-1671
Email: amy.tao@sfgov.org

Attorneys for ANDREW ENRIQUEZ

ENDORSED
FILED
SAN FRANCISCO COUNTY
SUPERIOR COURT

2024 MAR 19 PM 2:06

CLERK OF THE COURT
BY: Vanessa Camarena
DEPUTY CLERK

E-MAILED
MAR 19 2024
By: .....

Superior Court of the State of California
County of San Francisco

People of the State of California, Plaintiff, vs. **ANDREW ENRIQUEZ,** Defendant.	Court No. 22014337 **Motion to Dismiss for Speedy Trial Violation (Pen. Code, § 1382)** Date: 04/03/2024 (TO SET) Time: 9:00 AM Dept.: 017

The defendant moves to dismiss the complaint on the ground that trial has been delayed without good cause beyond the speedy trial deadline established by Penal Code section 1382.[1]

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[1] The defendant incorporates by reference the exhibits filed in support of the motion to dismiss for speedy trial violation in People v. Kelly Waterman, no. 23015368, as if attached to this motion in full. Exhibits 1–49 are too voluminous to attach in paper form, but are available at http://tinyurl.com/bdzekbuh. A master CD has been provided to the Court.

Statement of Facts

1. Procedural history

On February 15, 2023, the defendant was arraigned on the misdemeanor complaint. The defendant pleaded not guilty. On June 14, 2023, the defendant asserted their speedy trial right. The Court set July 14, 2023 as the last day for trial.

- On **June 27, 2023**, the Court continued defendant's trial to July 14, 2023, without citing a basis for continuing the matter to its last day.
- On **July 14, 2023**, the Court continued defendant's trial to October 16, 2023, citing the COVID good cause written order.
- On **October 16, 2023**, the Court continued defendant's trial to December 1, 2023. Both the court minutes and hearing date is missing from the Court's system. On October 23, 2023, the court clerks were notified via e-mail that the minutes are missing, and no response was provided. The jury trial date itself is no longer listed. It is unclear whether the Court provided any basis for continuing defendant's trial further past its last day.
- On **December 1, 2023**, the Court continued defendant's trial to March 5, 2024, citing the COVID good cause written order. No good cause last day was set.
- On **March 5, 2024**, the Court continued defendant's trial to April 3, 2024, granting the People's motion to continue. A good cause last day was set for April 3, 2024. The minutes also note that defendant's last day was July 14, 2023, and the first good cause last day was December 1, 2023.

2. Further background

A. All COVID-19 emergency orders have been rescinded

On June 15, 2021, the San Francisco health officer's "Safer Return Together" order came into effect.[2] The order hailed the success of San Francisco's vaccination campaign at containing

[2] **Exhibit 1**, S.F. Dept. of Public Health, Order of the Health Officer, no. C19-07y (June 11, 2021), also at <https://sfbos.org/sites/default/files/2021.07.08%20FINAL%20Health%20Officer%20Order%20No.%20C19-07y%20%28update%29.pdf>.

COVID-19, rescinded the previous stay-at-home order, and lifted indoor capacity limits and social distancing requirements. In response, the trial court announced that it was returning to "pre-pandemic" levels of service on June 28, 2021.[3]

Effective April 30, 2022, the Chief Justice rescinded the remaining provisions of her statewide emergency orders.[4] Effective June 30, 2022, the Governor rescinded the remaining provisions of his emergency order relating to the judiciary.[5] And in short order, most counties that had previously relied on local emergency orders to continue jury trials returned to normal operations. Since late 2022, no COVID-19 local emergency orders permitting 30-day extensions of jury trials have been issued.[6] Superior courts in San Francisco's peer counties returned to normal years ago.[7]

On February 28, 2023, the Governor terminated the COVID-19 state of emergency in California.[8] The San Francisco public health officer terminated the local health emergency declaration on the same date.[9] On April 10, 2023, the President approved a joint resolution terminating the national emergency relating the COVID-19 pandemic. (Pub. L. No. 118–3 (Apr. 10, 2023), 137 Stat. 6.) On May 5, 2023, the Director-General of the World Health Organization declared that COVID-19 "no longer constitutes a public health emergency of international

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[3] **Exhibit 2**, San Francisco Superior Court, "San Francisco Superior Court to Expand Services, Update Health Guidelines Beginning Monday June 28" (June 25, 2021), also at <https://sf.courts.ca.gov/system/files?file=updated-court-service-expansion-release.pdf&1646297040001=>.

[4] California Courts Newroom, "California Chief Justice Rescinds Temporary Emergency Measures" (Mar. 3, 2022), at <https://newsroom.courts.ca.gov/news/california-chief-justice-rescinds-temporary-emergency-measures>.

[5] **Exhibit 3**, Governor's Exec. Order No. N–04–22, ¶ 17 [rescinding Exec. Order No. N–38–20, ¶¶ 1–5].

[6] **Exhibit 4**, California Courts Newsroom, "Court Emergency Orders," also at <https://newsroom.courts.ca.gov/covid-19-news-center/court-emergency-orders> [listing local emergency orders].

[7] **Exhibits 45–49**, declarations from public defenders in Contra Costa, Marin, Alameda, Sacramento and Los Angeles Counties.

[8] **Exhibit 5**, Governor's Proclamation (Feb. 28, 2023), also at <https://www.gov.ca.gov/wp-content/uploads/2023/02/COVID-SOE-Termination-Proclamation-2.28.23.pdf?emrc=1db54f>.

[9] **Exhibit 6**, S.F. Dept. of Public Health, Termination of Emergency Declaration (Feb. 28, 2023), also at <https://www.sf.gov/sites/default/files/2023-02/SF-COVID-19-PHE-termination.pdf>.

concern,"[10] and announced that COVID-19 was therefore "over as a global health emergency."[11] On May 11, 2023, the federal public emergency relating to the COVID-19 pandemic lapsed without being renewed.[12] On June 14, 2023, the last statewide COVID-19 emergency order in effect in the United States expired.[13]

B. **The Court failed to use Civic Center to clear its backlog**

The Civic Center Courthouse contains twelve trial courtrooms, and has long served as an overflow courthouse for criminal trials. In 2018 and 2019, more than 160 misdemeanor trials were sent to Civic Center, and departments 220, 303, 305, 306, 318, 504, 505, 606, 608 and 624 each hosted multiple trials.[14]

Since 2020, the Court has refused to assign felony trials to Civic Center, citing security concerns. It did, however, permit "non-violent" out-of-custody misdemeanor trials to be held at Civic Center, and later broadened this rule to allow all out-of-custody misdemeanor trials to be heard there. Since the Hall of Justice was largely occupied with felony trials, Civic Center was perfectly placed to handle the Court's misdemeanor backlog.

But the Court did not take advantage of this opportunity. It sent only a slow trickle of misdemeanor trials to Civic Center. On 55% of the court days from July 1, 2021 until February 10, 2023, the Court's records showed no criminal trials taking place at all in Civic Center.[15] On

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[10] **Exhibit 7**, World Health Organization, Statement on the fifteenth meeting of the IHR (2005) Emergency Committee on the COVID-19 pandemic (May 5, 2023), also at <https://www.who.int/news/item/05-05-2023-statement-on-the-fifteenth-meeting-of-the-international-health-regulations-(2005)-emergency-committee-regarding-the-coronavirus-disease-(covid-19)-pandemic>.

[11] **Exhibit 8**, United Nations, "WHO chief declares end to COVID-19 as a global health emergency" (May 5, 2023), also at <https://news.un.org/en/story/2023/05/1136367>.

[12] **Exhibit 9**, U.S. Dept. of Health and Human Services, "Fact Sheet: End of the COVID-19 Public Health Emergency" (May 9, 2023), also at <https://www.hhs.gov/about/news/2023/05/09/fact-sheet-end-of-the-covid-19-public-health-emergency.html>.

[13] See Ballotpedia, "State emergency health orders during the coronavirus (COVID-19) pandemic, 2021-2023", at <https://ballotpedia.org/State_emergency_health_orders_during_the_coronavirus_(COVID-19)_pandemic,_2021-2023#cite_note-117> [showing expiration of Texas COVID-19 emergency].

[14] **Exhibit 10**, list of misdemeanor trials at Civic Center Courthouse, 2018–Mar. 2020.

[15] **Exhibit 11**, diagram showing number of Civic Center courtrooms in use for criminal trials, July 2021–Dec. 2023; see also **Exhibit 12**, criminal daily court status reports, June 28, 2021–Jan. 12, 2024. There were 400 court days between July 1, 2021 and February 10, 2023: on 220 days, there were no criminal trials at Civic Center; on 135 days, there was one trial; on 38 days, there were two trials; and no data was available for seven days.

34% of the court days during that period, Civic Center was hosting only one criminal trial. On 10% of the court days, two criminal trials were being held there. And there were months-long periods during which Civic Center tried virtually no criminal cases.

In July 2021, Public Defender Mano Raju wrote to the presiding judge, detailing the problem and urging him to follow the example of the Riverside County Superior Court in *People v. Engram* and devote all civil departments to criminal jury trials.[16] The judge's reply read, in full: "Thank you for your correspondence of July 16, 2021 via email. Our court continues to make criminal trials assigned to the Civic Center Courthouse (CCC) a priority. As to your security concerns at CCC, please address the same to Sheriff Miyamoto."[17]

On February 14, 2023, the Court set aside two Civic Center courtrooms—departments 514 and 624—for out-of-custody misdemeanor trials. For the rest of the year, out-of-custody misdemeanor trials were sent almost exclusively to these two departments, while other departments handled civil matters.[18] It was not until January 2024—two and a half years after the Court's full reopening—that Civic Center trial courtrooms were made generally available for misdemeanor cases.

In contrast to the one or two courtrooms handling criminal cases, the Court made numerous courtrooms available for its civil docket. In a January 2021 videoconference with members of the civil bar, the presiding judge announced: "Everyone is ready to go . . . So that makes it easier, as opposed to telling everyone we only have one courtroom. Are you kidding? No, we have all courtrooms. Everyone is available for jury trials and/or bench trials; we're all equipped for it. We're ready to go." The judge continued: "If you have a trial date, you better get ready for it . . . we're open for business, we're safe, we welcome everybody."[19] True to that promise, the Court handled a large volume of civil matters in the years that followed. Excluding small claims, probate and mental health cases, it held 180 civil trials in fiscal year 2020–21, of which 16 were jury trials; 369 civil trials in 2021–22, of which 49 were jury trials; and 401 civil trials in 2022–

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[16] **Exhibit 13**, letter from Mano Raju to Judge Feng (July 16, 2021).
[17] **Exhibit 14**, letter from Judge Feng to Mano Raju (July 16, 2021).
[18] **Exhibit 15**, civil daily court status reports, July 3, 2023–Jan. 11, 2024.
[19] **Exhibit 16**, transcript of State of the Court Update Webinar (Jan. 29, 2021).

23, of which 52 were jury trials.[20] These cases were not limited to unlawful detainers and other urgent matters: as early as October 2021, the Court was regularly holding personal injury, contract/warranty, and quiet title trials, including jury trials, at Civic Center.[21]

The Court's daily status reports also show when criminal courtrooms were closed due to a staffing issue or COVID-19 exposure. Over two and a half years, just fifteen court days list "staff" or "staffing" as a reason for a dark day.[22] Even fewer list "COVID" as a reason for a dark day.[23] Finally, the Court keeps records of the reasons for judicial absences: since reopening, the vast majority have been for vacations ("VA") and official business ("OB"), with only a small fraction due to medical leave ("SP", "AM", "PM").[24]

The Court's underuse of Civic Center in the years after reopening drove the misdemeanor backlog. On October 13, 2021, there were just 98 no-time-waiver misdemeanor trials in the queue.[25] But as of January 2, 2024, there were 743 no-time-waiver misdemeanor trials—a seven-fold increase.[26] The backlog thus arose *after* COVID-19 restrictions were lifted. The oldest case in the queue had an original last day of July 6, 2022, more than a year after reopening; only 11% of the cases had original last days before 2023; more than half of the cases had original last days falling in July 2023 or later.[27]

C. **A shortage of deputies is not to blame for the backlog**

The Sheriff's Department was not responsible for the underuse of Civic Center. Even before the COVID-19 pandemic, it suffered from a chronic lack of staff and relied heavily on overtime

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[20] **Exhibit 17**, 2024 Court Statistics Report, pp. 92, 94, also at <https://www.courts.ca.gov/documents/2024-Court-Statistics-Report.pdf>; **Exhibit 18**, 2023 Court Statistics Report, pp. 105, 107, also at <https://www.courts.ca.gov/documents/2023-Court-Statistics-Report.pdf>; **Exhibit 19**, 2022 Court Statistics Report, pp. 92, 94. also at <https://www.courts.ca.gov/documents/2022-Court-Statistics-Report.pdf>.

[21] **Exhibit 20**, civil daily court status reports, Sept. 23–Oct. 12, 2021; **Exhibit 21**, minute orders from civil trials; see also Exhibit 15.

[22] Exhibit 12, pp. 1211, 1212, 1213, 1217, 1302, 1310, 1333, 1714, 2646, 2650, 3650, 3676, 3701, 3755, 3763.

[23] Exhibit 12, pp. 1323, 1331, 1355, 1363, 1380, 1764, 1776, 1788.

[24] **Exhibit 44,** judicial leave calendar and key.

[25] **Exhibit 22**, misdemeanor trial list, Oct. 13, 2021.

[26] **Exhibit 23**, misdemeanor trial list, Jan. 2, 2024.

[27] *Ibid.*

to provide bailiff services.[28] But since 2020, Sheriff Miyamoto has made clear that, despite staffing challenges, his department was ready and willing to accommodate the Court's security needs.

In 2021, the Sheriff executed a contract with the Superior Court under which it agreed to provide a sergeant and twenty-two deputies to staff Civic Center, including one dedicated to criminal matters and four "floaters". It also promised to "provide additional staffing" at Civic Center when necessary to try in-custody criminal cases.[29]

On December 7, 2021, the Board of Supervisors voted to permit the Sheriff to provide "supplemental law enforcement services" to retail stores in order to combat shoplifting.[30] One supervisor cited the trial backlog, and expressed concern that it would make it harder to use mandatory overtime to "hold criminal trials at the civil courthouse" if "sheriffs are spending their time guarding Walgreens."[31] The Sheriff acknowledged the supervisor's concern "about the courts and our ability to support the courts if they were to open or plan for the opening of additional trial courtrooms, *which we are always prepared to do.*"[32] He went on: "Absent the reference to the fact that we are understaffed currently, *it's our obligation when tasked with something to make sure that we reallocate resources and use what we do have to fulfill that obligation.*"[33]

The supervisor then asked whether the Sheriff had sufficient staff to implement a plan to hold trials at the Civic Center Courthouse. The Sheriff replied: "I'm basically saying two things here. One, I'm asking to be supported in hiring, recruiting and retention of people to come up to the levels that we are supposed to be staffed, but in the absence of that, we still work with what we

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[28] **Exhibit 24**, S.F. Office of the Controller, *Key Strategies Could Help the Sheriff Reduce Its Heavy Reliance on Overtime and Better Communicate Its Staffing Needs* (June 19, 2019), pp. 28–29, also at <https://sfcontroller.org/sites/default/files/Documents/Auditing/SHF%20-Sheriff%20Staffing%20Report%2006.19.19_0.pdf>.

[29] **Exhibit 25**, Letter of Agreement for Court Security Services.

[30] S.F. Ord. No. 221–21; **Exhibit 26**, Mallory Moench, "In S.F. push against retail theft, stores can now hire off-duty sheriff's deputies," *San Francisco Chronicle* (Dec. 7, 2021), at <https://www.sfchronicle.com/sf/article/In-S-F-push-against-retail-theft-off-duty-16683168.php">.

[31] S.F. Bd. of Supervisors, Regular Meeting (Dec. 7, 2021), at 47:20, at <https://sanfrancisco.granicus.com/player/clip/40028?view_id=10&redirect=true>.

[32] *Id.* at 1:01:04.

[33] *Id.* at 1:01:21.

have to get the job done. *[S]o if we're asked by anybody, whether it's the courts or the Board or City Hall or anybody else, or Department of Public Health, then we make it work with what we have.*"[34]

On March 3, 2023, the Sheriff appeared before the Sheriff's Department Oversight Board. In the course of a discussion about court security, he noted that, that day, he had to rellocate multiple deputies from the jail to act as bailiffs. But he emphasized: "*One thing I can say as the Sheriff is, I have never said no to the courts when they have asked us to open a courtroom.* So there are others who make those decisions, but any time a decision made is we are there to support regardless of the staffing level and make sure we have the staff to support it."[35]

In June 2023, the Sheriff announced that he was deploying an "emergency team" of 130 deputies to carry out street-level drug arrests.[36] A Sheriff's Department representative stated that deputies "were being pulled from other divisions on overtime" to staff the effort.[37] In October 2023, the Controller reported that the Sheriff had already "nearly depleted" its overtime budget for the fiscal year, in part because of the emergency drug enforcement plan.[38]

In response to an October 12, 2023 inquiry by the Public Defender's office, the Sheriff's Department reported that zero Civic Center deputies had been off duty due to COVID-19 during the previous month.[39] It also indicated that it had no record of communications with the Court since July 2023 about opening additional courtrooms.[40]

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[34] *Id.* at 1:08:10.
[35] S.F. Sheriff's Dept. Oversight Bd., Meeting (Mar. 3, 2023), at 2:20:39, at <https://sanfrancisco.granicus.com/player/clip/43123?view_id=223&redirect=true>.
[36] **Exhibit 27**, Mallory Moench, "S.F. sheriff sent an emergency team to tackle open-air drug markets. Here's what it's done," *San Francisco Chronicle* (July 8, 2023), also available at <https://www.sfchronicle.com/sf/article/sf-drug-crisis-fentanyl-sheriff-dealers-users-18187960.php>.
[37] *Ibid.*
[38] **Exhibit 28**, J.D. Morris, "'Extremely unusual': S.F. Sheriff's Office spent majority of its overtime budget in 3 months," *San Francisco Chronicle* (Oct. 20, 2023), also at < https://www.sfchronicle.com/sf/article/sheriff-office-overtime-budget-18434523.php#>.
[39] **Exhibit 29**, response to public records request.
[40] *Ibid.*

D. **Department 17's irregular calendaring practices and failure to enforce sections 1050 and 1382 drove the backlog**

The backlog was worsened by the Court's failure to enforce sections 1050 and 1382 in its misdemeanor calendar department. The Court routinely delayed cases past their statutory deadline for months on its own motion based on courtroom unavailability, without observing any of section 1050's procedural requirements, and without even asking the parties about their readiness.[41] In early 2023, it would use a boilerplate "good cause" order, which it would file in bulk at the end of calendar without notice to the parties; later, it would simply declare that "good cause" existed without specifying what the reason for the delay was. It also frequently continued cases when the assigned district attorney was unavailable, in the absence of any motion to continue, and even in cases which did not qualify for vertical prosecution under section 1050(g); sometimes, it even continued cases when the District Attorney admitted that it was not ready and had not prepared for trial.[42] Had it sent out or dismissed these cases, as the law requires, its backlog would not have exploded in the way that it did. As this Court has recently seen, dismissals often result from the pressure of an impending jury trial.[43] But for years, department 17 took the pressure off with its blanket trial continuances.

Memorandum of Points and Authorities

1. The prosecution has the burden of justifying the trial delay

Section 1382 requires that a misdemeanor case be dismissed unless it is tried within 45 days of an out-of-custody arraignment, or 30 days of an in-custody arraignment or withdrawal of a time waiver, unless "good cause" is shown for a delay. (§ 1382, subd. (a)(3).) This statute interprets and supplements the state constitution's speedy trial guarantee. (*People v. Martinez* (2000) 22 Cal.4th 750, 766.) It "constitutes [. . .] a legislative determination that a trial delayed

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[41] See **Exhibits 30–39**, transcripts of continuances with no inquiry as to readiness.

[42] See **Exhibit 40** [court continues DUI trial past last day for "public safety" reasons, despite describing DA's reasons for lack of readiness as "nonsense"], **Exhibit 41** [court continues trial past last day despite DA admitting lack of readiness and failure to obtain bodyworn camera footage], **Exhibit 42** [court continues trial because of prosecutor's unavailability in non-domestic-violence case]; **Exhibit 43** [court continues trial because of prosecutor's unavailability in non-domestic-violence case].

[43] Jonah Lamb, "Case dismissed: Hundreds of San Francisco criminal cases stalled for years by Covid", *San Francisco Standard* (Feb. 20, 2023), at <https://sfstandard.com/2024/02/19/san-francisco-courts-backlog-dismissal/>.

more than [the statutory period] is prima facie in violation of a defendant's constitutional right." (*Sykes v. Superior Court* (1973) 9 Cal.3d 83, 89.) No showing of prejudice is needed: even one day of unexcused delay entitles the defendant to a dismissal. (*Martinez*, p. 766; *People v. Hajjaj* (2010) 50 Cal.4th 1184, 1204.)

Chronic congestion—"the excuse that there are too many cases and a shortage of judges to try them"—does not, in general, justify delaying a trial. (*People v. Gopal* (1985) 171 Cal.App.3d 524, 545–546 [citing *Rhinehart v. Municipal Court* (1984) 35 Cal.3d 772, 781–782].) That is because courts have a duty to organize their departments so that criminal cases can be tried in a timely manner. (*Gopal*, p. 545; *People v. Engram* (2010) 50 Cal.4th 1131, 1156.) There is a narrow exception to this rule: good cause may be found when the congestion is due to "exceptional circumstances," judges have given "exclusive attention to criminal matters," and the Judicial Council "is unable to offer assistance." (*Gopal*, p. 546; see *Rhinehart*, p. 782, fn. 17 [delay may be excusable when "certain unique, nonrecurring events have produced an inordinate number of cases for court disposition"].)

But it is the prosecution, not the Court, that bears the burden of showing that exceptional circumstances existed. (*Gopal*, p. 546.) That is true even when the continuance was on the Court's own motion. (*Ibid.*; *People v. Santamaria* (1991) 229 Cal.App.3d 269, 277; *People v. Hajjaj* (2010) 50 Cal.4th 1184, 1197.) Thus, if the prosecution declines to defend the continuance, the Court may not step into the breach and assemble evidence to support its own decision after the fact. Rather, it is limited to considering "information the parties timely provide." (*Mendez v. Superior Court* (2008) 162 Cal.App.4th 827, 837.)[44]

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[44] Unless a law provides otherwise, judicial officers may not "independently investigate facts in a proceeding," and are required to "consider only the evidence presented or facts that may be properly judicially noticed." (Cal. Code Jud. Ethics, canon 3B(7)(a).) Although consultation with other judges and court staff is proper, such consultation must not include "receiving factual information that is not part of the record or an evaluation of that factual information." (*Ibid.*) Moreover, judges with "personal knowledge of disputed evidentiary facts concerning the proceeding" must recuse themselves (Code Civ. Proc., § 170.1, subd. (a)(1)(A)): it follows that judges may not obtain or rely on such non-record evidence. These rules mean that the Court may not itself inquire into the facts of how Civic Center was used or how the Sheriff responded to COVID-19—issues which are not subject to judicial notice (see Evid. Code, § 452)—but must rely on the evidence submitted by the parties. That rule applies with special force here, where the Court's own management decisions are in question.

2. There were no "exceptional circumstances" justifying a trial delay

No exceptional circumstances justified the delay here. A court cannot "turn to the pandemic and perpetually cite exceptional circumstances to avoid dismissal under section 1382." (*Hernandez-Valenzuela v. Superior Court* (2022) 75 Cal.App.5th 1108, 1135.) That is especially true here, since the Court's underuse of Civic Center courtrooms and improper blanket continuances caused the misdemeanor backlog to explode—from less than 100 cases to over 700 cases—even after all public health restrictions had been lifted.

A. COVID-19 cannot justify trial delays long after emergency orders have been rescinded

By definition, an "emergency" cannot last forever. It has now been more than four years since COVID-19 was detected, thirty-one months since this Court's reopening in June 2021, and one year since both California and San Francisco rescinded all COVID-19 emergency orders. It is high time to acknowledge that the Court's misdemeanor backlog—the vast majority of which was racked up *after* reopening—has become a chronic condition.

Hernandez-Valenzuela provides a useful contrast. (*Hernandez-Valenzuela, supra*, 75 Cal.App.5th 1108.) There, the Court of Appeal dealt with continuances of in-custody felony trials in August and September 2021, just weeks after reopening. (*Id.* at p. 1131.) It held that exceptional circumstances justified the delay, relying on the following factors: **(1)** the Governor's state of emergency was still in place, and government entities were still subject to public health orders (*id.* at p. 1129); **(2)** courtrooms had only been open for a few weeks, short of the "years-long congestion" that the Supreme Court had recognized as a "chronic condition" in *Engram*, and it was not reasonable to expect the Court to have dealt with its backlog within such a short time (*id.* at pp. 1128, 1131); **(3)** the majority of the cases in the backlog had last days which fell during the 15-month period of heavy courtroom restrictions (*id.* at p. 1130); **(4)** although not many felony cases had been tried, there was evidence that hundreds had been "advanced" in an effort to send them out (*id.* at pp. 1131–1132).

Every one of the factors relied on by *Hernandez-Valenzuela* has flipped, and now cuts against a finding of exceptional circumstances. **(1)** Judicial emergency orders were lifted in

2022, and all local and state emergency orders were rescinded almost a year ago. That reflects the judgment of state and local authorities that, in early 2023, COVID-19 had evolved from a "crisis emergency" into a "manageable situation," and that, unlike in 2021, government bodies no longer need emergency help to sustain their normal operations.[45] **(2)** It has now been years since the Court's full reopening. The chronic misdemeanor backlog can no longer be excused as a temporary, exceptional condition as the Court emerged from lockdown. **(3)** The entirety of the misdemeanor backlog arose more than a year after reopening, and most of it dates from July 2023 or later; it is not a hangover from COVID-19 restrictions, as in *Hernandez-Valenzuela*, but instead increased sevenfold after the Court failed to cope with congestion in the years that followed. **(4)** Far from "advancing" hundreds of trials, the Court improperly *continued* hundreds of trials for months without observing section 1050's procedural requirements, often without even inquiring about readiness, and sometimes to accommodate the prosecution's unreadiness or unavailability in non-domestic-violence cases.

To be sure, COVID-19 has not vanished. The Governor acknowledged as much when he rescinded the state of emergency. But the mere existence of an infectious disease does not establish blanket good cause for continuances: instead, the prosecution must show "a nexus between the conditions created by the pandemic and the purported need to delay the hearing." (*Bullock v. Superior Court* (2020) 51 Cal.App.5th 134, 154.) In *Bullock*, the trial court found that the impact of COVID-19 pandemic on court operations constituted good cause to continue a preliminary hearing past the 15-day deadline for dismissal or release under Penal Code section 859b. (*Id.* at p. 139.) The Court of Appeal held that the trial court abused its discretion, since it failed to explain *how* the pandemic made it impossible to use one of its courtrooms to safely hold the preliminary hearing, especially in light of the Court's use of an open department for "urgent issues such as in-custody arraignments." (*Id.* at pp. 153–154.) The abuse of discretion is all the more evident here: COVID-19 has not stopped the Court from devoting its resources to *non-urgent* civil proceedings, such as slip-and-fall cases and insurance disputes, and it cannot excuse

[45] <https://www.gov.ca.gov/2022/10/17/governor-newsom-to-end-the-covid-19-state-of-emergency/>

the Court's failure to send criminal cases to trial. (See *Gopal*, *supra*, 171 Cal.App.3d at p. 546 [good cause requires showing that judges have given "exclusive attention to criminal matters"].)

San Francisco is the only trial court in the state that is still citing COVID-19 as good cause for blanket continuances. And we are unaware of any other government institution in the country still using the pandemic as an excuse to deny a critical, time-sensitive public service. Four years on, there is no valid reason for this Court to hold itself to a different standard. "Exceptional circumstances" did not justify a continuance here.

B. The Court's years-long failure to utilize Civic Center undercuts any good cause finding

The Court has suggested that the need to prioritize felony cases after reopening justified delaying misdemeanor trials. That is incorrect for two reasons.

First, section 1048 simply establishes a presumptive order in which the Court should dispose of cases on its "calendar." It does not sanction disregarding the speedy trial rights of misdemeanor defendants whenever the felony docket is congested. Nor does it disapply the rule that chronic congestion cannot amount to good cause. If COVID-19 is no longer an "exceptional circumstance"—as it plainly is not, four years on—section 1048 cannot come to the rescue.

Second, and more importantly, the felonies-first rationale fails because it is unsupported by the facts. After reopening, the Court insisted that felonies and in-custody trials could not be sent to Civic Center. That courthouse was thus ideally positioned to serve as an overflow venue for trying a large number of DUIs and other low-security misdemeanor cases, as it had done in the past. Indeed, repurposing civil courtrooms was the only way to solve a backlog of the size that San Francisco confronted. The Public Defender urged the Court to follow the example set by the Riverside County Superior Court in *People v. Engram* by filling its civil courthouse with criminal trials.

But the Court squandered this opportunity. For a year and a half, it wasted most court days at Civic Center by not holding any criminal jury trials at all; when it did send trials there, usually only one courtroom was used. It only opened two misdemeanor courtrooms in February 2023. And it was not until January 2024 that it fully opened Civic Center for misdemeanor trials,

resulting in a rapid diminution of the backlog. If the Court had done this a year ago, it would not be in this predicament. Contrast that to the hundreds of civil trials, including more than a hundred civil *jury* trials, the Court has held since reopening—each one tying up a judge and court clerk—and the many civil courtrooms that sat empty each day, including on the days that this case was continued. This extreme underuse cannot be blamed on a heavy felony docket.

Nor can it be blamed on staff shortages. The Sheriff repeatedly informed City officials that he was standing ready to open additional courtrooms, regardless of staffing issues, and that he had "never said no" to any such request—implying, astonishingly, that the Court had never asked him to open all available Civic Center courtrooms until January 2024. If the Sheriff could find 130 deputies to surge drug enforcement in the Tenderloin, and still more to fight shoplifting at Walgreens, he certainly could have detailed five or ten deputies to crank out low-security misdemeanor trials at Civic Center. Court reporters are not needed for misdemeanor trials, and there were clearly enough judges and court clerks to try a large volume of civil cases.

C. **The stale "good cause" order does not change the analysis**

At an earlier calling of the case, the Court issued a boilerplate "good cause" order. This order does not alter the facts. And for several reasons, it does not alter the legal analysis.

First, the order is stale. It was entered long ago, and other continuances have intervened. The Court cannot simply assume without evidence that its good cause finding carries across to subsequent trial delays, or that the facts it contained were still applicable.

Second, the order is itself unsupported by evidence. It purports to judicially notice a large number of items, including long-rescinded emergency orders, unspecified "court orders," the Court's "facilities" and "operating procedures," and the "findings supporting good cause" in a depublished appellate case. But "facilities" and "procedures" are not subject to notice. (See Evid. Code, §§ 451, 452.) And although a court may notice the *existence* of court and executive orders, it may not notice the *truth* of statements they contain. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113–114; accord *Barri v. Workers' Comp Appeals Bd.* (2018) 28 Cal.App.5th 428, 437 [improper to rely on judicial notice to prove disputed facts].) Also, by only taking judicial notice in a written order issued *after* the own-motion continuance

had been granted, the Court deprived the parties of their entitlement to object and offer countervailing evidence. (Evid. Code, § 455; *People v. Banda* (2018) 26 Cal.App.5th 349, 360–361.) Had this opportunity been given, the defendant would have objected—and does now object—to the proposed judicial notice.

Third, the order contains a lengthy recitation of disputed facts about deputy and "judicial staff member" absences with no indication of where the information comes from. If it is sourced from the personal knowledge of judicial administrators, it was improperly included. (See Code Civ. Proc., § 170.1, subd. (a)(1)(A).) If it comes from second-hand reports by court staff and outside agencies, it is inadmissible hearsay. And it contradicts the Court's records of daily operations at the Hall of Justice Civic Center, which show numerous departments handling civil trials; the Court's records of the reasons for judicial absences; and the Sheriff's own statements about his ability to staff courtrooms. At the very least, these records raise a sufficient dispute about alleged staffing problems to forbid judicial notice. Furthermore, the reference to "judicial staff members" is ambiguous: it could apply to court reporters, who are not needed for misdemeanor trials.

3. The length of the continuances was excessive

Finally, the continuances were unjustified because their length was excessive in two respects. *First*, a continuance can only be granted "for that period of time shown to be necessary by the evidence considered at the hearing on the motion." (§ 1050, subd. (i); accord *People v. Sutton* (2010) 115 Cal.App.4th 533, 546 ["length" of delay relevant to whether good cause existed].) Here, of course, the temporary unavailability of courtrooms was not good cause: but even if it was, it could have justified one or two days' delay at the most, not months. *Second*, the Court improperly added a ten-day grace period to the last day. But this grace period is only applicable if the defendant requests or consent to the delay. (§ 1382, subds. (a)(2)(B), (a)(3)(B).) If the defendant objects, there is no grace period, and the date to which trial is continued "is the day trial *must* begin, assuming defense counsel announces 'ready' and good cause does not exist to justify a *further* delay." (*People v. Superior Court* (*Alexander*) (1995) 31 Cal.App.4th 1119, 1131.)

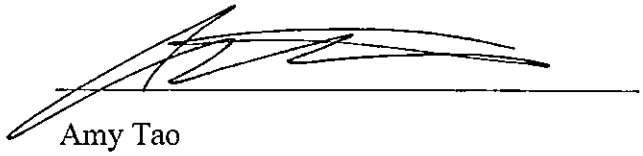
Conclusion

For these reasons, the case should be dismissed.

Dated: 3/19/2024

Respectfully submitted.

Manohar Raju
Matt Gonzalez



Amy Tao
Attorneys for Defendant

Proof of Service

I say:

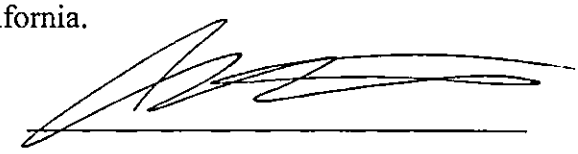
I am over eighteen years of age and not a party to the above action. My business address is 555 Seventh Street, San Francisco, California 94103.

I, Amy Tao, served copies of the attached on the following:

San Francisco District Attorney Elliott Brooks
350 Rhode Island Street
North Building, Suite 400N
San Francisco, CA 94103

I declare under penalty of perjury that the foregoing is true and correct.

Executed on 3/19/2024 in San Francisco, California.



Amy Tao

EXHIBIT G

Minute order (Apr. 3, 2024)

San Francisco Criminal Court
Minute Order

Case Title	The People v. ENRIQUEZ	**Department**	Department 17
Case Number	CRI-22014337	**Judge**	Victor Hwang
Hearing Type	Jury Trial	**Hearing Date**	04-03-2024 09:00 AM
Clerk	H. Ponce	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter		**Court Officer**	

Appearance ANDREW D ENRIQUEZ (Defendant) present.

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	
2	23152(b) VC/M	Misdemeanor			Not Guilty	
3	12500(a) VC/M	Misdemeanor			Not Guilty	

Add Representation Special Appearance AHMANDA LEE making special appearance for San Francisco District Attorney's Office.

Add Representation Special Appearance LAUREN BURRUSFIKES making special appearance for San Francisco Public Defender's Office.

Hearing The Jury Trial is assigned to Woods, Braden C on 04/03/2024 9:00 AM in Department 502.

Hearing Status Status for This Hearing set to Occurred

Add Hearing Outcome Outcome(s) of the current hearing recorded as Forthwith to Another Department.

EXHIBIT H

Motion for Stay of Sentencing and for Stay of Probation Conditions Pending Appeal

Manohar Raju
Public Defender
City and County of San Francisco
Matt Gonzalez
Chief Attorney
Amy Tao, SBN 347273
Deputy Public Defender
555 Seventh Street
San Francisco, CA 94103
Direct: 415-915-9681
Email: amy.tao@sfgov.org

Attorneys for Andrew Enriquez

ENDORSED
FILED
SAN FRANCISCO COUNTY
SUPERIOR COURT
2024 APR 24 PM 12:45
CLERK OF THE COURT
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E-MAILED
APR 24 2024
By:

Superior Court of California
San Francisco County

People of the State of California, Plaintiff, vs. **Andrew Enriquez,** Defendant.	SCN: 22014337 **Motion for Stay of Sentencing (Pen. Code § 1050) and for Stay of Probation Conditions Pending Appeal (Pen. Code § 1272 and *In re Bakke*)** Date: April 26, 2024 Time: 9:00 A.M. Dept: 502

Defendant Andrew Enriquez moves for a stay of sentencing pursuant to Penal Code section 1050 and a stay of probation conditions pending appeal pursuant to Penal Code section 1272 and *In re Bakke*.[1]

STATEMENT OF THE CASE

On February 15, 2023, Mr. Andrew Enriquez was arraigned on the following charges.

- Count One: Vehicle Code section 23152(a), with further allegation of a blood alcohol content of .15 or higher;

[1] *In re Bakke* (1986) 42 Cal.3d 84, 88.

- Count Two: Vehicle Code section 23152(b), with further allegation of a blood alcohol content of .15 or higher;
- Count Three: Vehicle Code section 12500(a).

On June 14, 2023, Mr. Enriquez asserted his speedy trial right, and the Court set July 14, 2023 as the last day for trial.

- On **June 27, 2023**, the Court continued Mr. Enriquez's trial to July 14, 2023, without citing a basis for continuing the matter to its last day.
- On **July 14, 2023**, the Court continued Mr. Enriquez's trial to October 16, 2023, citing the COVID good cause written order.
- On **October 16, 2023**, the Court continued Mr. Enriquez's trial to December 1, 2023. Both the court minutes and hearing date are missing from the system. On October 23, 2023, the court clerks were notified via e-mail that the minutes are missing, and no response was provided. It is unclear whether the Court provided any basis for continuing Mr. Enriquez's trial further past its last day.
- On **December 1, 2023**, the Court continued Mr. Enriquez's trial to March 5, 2024, citing the COVID good cause written order. No good cause last day was set.
- On **March 5, 2024**, the Court continued Mr. Enriquez's trial to April 3, 2024, granting the People's motion to continue. A good cause last day was set for April 3, 2024.
- On **April 3, 2024**, defense's motion to dismiss pursuant to Penal Code section 1382 was denied, and the jury trial was assigned to Judge Woods in Department 502.

On April 10, 2024, Mr. Enriquez was found guilty of all counts and allegations, and the sentencing hearing is scheduled for April 26, 2024.

COURT OF APPEAL STAYS

Following Department 17's orders denying defendants' motions to dismiss pursuant to Penal Code section 1382, the San Francisco Public Defender's office filed writs to the Court of Appeal. The Appellate Division has entered orders staying nine trials pending the Court of Appeal's decision in *People v. Mendoza*, San Francisco Superior Court Case No. 2528075.

STAY OF SENTENCING AND PROBATION CONDITIONS

Pursuant to Penal Code section 1050(b), to continue any hearing in a criminal proceeding, written notice shall be filed at least two court days before the hearing sought to be continued, detailing specific facts showing that a continuance is necessary. A continuance shall be granted upon a showing of good cause.

Here, good cause exists for a continuance or stay of sentencing. It is necessary so that the Court can act with appropriate guidance from the Court of Appeal regarding violations of Penal Code section 1382. Moreover, a stay of sentencing would avoid wasting valuable court resources on duplicative appeals.

Moreover, Department 17 frustrated Mr. Enriquez's ability to seek pre-trial review by only ruling on the Penal Code section 1382 motion just prior to sending the case to trial. A stay would allow the Court to maintain jurisdiction and correct its error if the Court of Appeal agrees that the Court's order denying Mr. Enriquez's motion is deficient.

Pursuant to Penal Code section 1272(b), after conviction of an offense not punishable with death or life without the possibility of parole, a defendant who has made application for probation or who has appealed may be admitted to bail as "a matter of right, before judgment is pronounced pending application for probation in cases of misdemeanors, or when the appeal is

from a judgment imposing imprisonment in cases of misdemeanors." The right to bail under section 1272 is not dependent on time nor form of order or judgment imposing imprisonment, but rather, the fact of imprisonment and the right of appeal invokes the statutory right to bail.[2]

Accordingly, in *In re Bakke*, the trial court imposed a jail term as a condition of probation but stayed execution of the jail term pending appeal.[3] The defendant in *Bakke* was convicted of a misdemeanor and placed on three year probation on conditions which included a 60 day jail sentence.[4] His sentence was stayed, and he was released on his own recognizance pending appeal.[5] While on appeal, his probation was revoked on two separate occasions for violation of probation, but the trial court continued the stay of his jail term until the appeal was resolved.[6] Following the affirmance of his judgment, the trial court's jurisdiction was not lost despite the fact that the original period of probation had expired due to delays in obtaining the record for appeal.[7]

Here, Mr. Enriquez has the right to bail pending appeal under Penal Code section 1272, and for bail to be set in an affordable amount. Given the serious questions regarding the validity of the Penal Code section 1382 denials, and the Appellate Division's orders staying cases, the Court should exercise its discretion under *Bakke* to stay the remaining terms of probation. This would effectively permit the Court to retain jurisdiction and defer the effective start date of probation.

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[2] *In re O'Driscoll* (1987) 191 Cal.App.3d 1356, 1360.

[3] *In re Bakke*, 42 Cal.3d at 88.

[4] *Id.*

[5] *In re O'Driscoll*, 191 Cal.App.3d at 1360, citing *In re Bakke*, 42 Cal.3d at 84.

[6] *Id.*

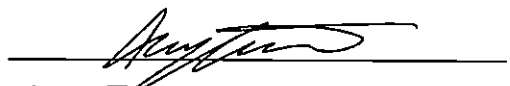
[7] *Id.*

CONCLUSION

Given the above reasons, Defense respectfully requests a stay for sentencing pursuant to Penal Code section 1050 and a stay of probation conditions pending appeal pursuant to Penal Code section 1272 and *In re Bakke*.[8]

Dated: 4/23/2024

Respectfully submitted,



Amy Tao
Deputy Public Defender
Attorney for Andrew Enriquez

[8] *In re Bakke*,42 Cal.3d at 88.

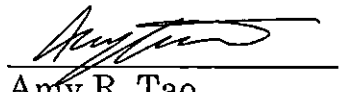
Declaration of Counsel

I, the undersigned, declare under penalty of perjury as follows:

1) I am an attorney licensed to practice law in all the courts of the State of California and am a Deputy Public Defender employed by the San Francisco Office of the Public Defender.
2) I am the attorney of record for the defendant in the above-referenced matter.
3) All information in the Statement of the Case of the attached motion is accurately detailed and supported by court minutes.
4) The San Francisco Public Defender's office has filed writs on cases following Department 17's orders denying defendants' motions to dismiss pursuant to Penal Code section 1382. As of April 23, 2024, nine orders have been received from the Appellate Division, staying nine trials pending the Court of Appeal's decision in People v. Mendoza, San Francisco Superior court Case No. 2528075.

I declare under penalty of perjury that the foregoing is true and correct to the best of my knowledge.

Executed on April 23, 2024 at San Francisco, California.



Amy R. Tao
Deputy Public Defender
For Andrew Enriquez

Proof of Service

I say:

I am over eighteen and not a party to this action. My business address is 555 Seventh Street, San Francisco, California 94103.

I caused to be filed and served the attached document on

Assistant District Attorney John Robles
San Francisco District Attorney
350 Rhode Island Street
North Building, Suite 400N
San Francisco, CA 94103

I declare under penalty of perjury that the foregoing is true and correct.

Executed on 4/~~23~~24/2024 in San Francisco, California.

Amy Tao

EXHIBIT I

Reporter's Transcript of Proceedings (Apr. 26, 2024)

1 SUPERIOR COURT OF THE STATE OF CALIFORNIA
2 FOR THE COUNTY OF SAN FRANCISCO
3 APPELLATE DIVISION
4
5 PEOPLE OF THE STATE OF) CASE NO. 22014337
CALIFORNIA,) APPELLATE NO.
6)
PLAINTIFF-RESPONDENT,)
7)
vs.)
8)
ANDREW ENRIQUEZ,)
9)
DEFENDANT-APPELLANT.)
10 ----------)
11
12 REPORTER'S TRANSCRIPT ON APPEAL
13 APPEAL FROM THE JUDGMENT OF THE
SUPERIOR COURT OF THE STATE OF CALIFORNIA
14 FOR THE COUNTY OF SAN FRANCISCO
HONORABLE BRADEN C. WOODS, PRESIDING JUDGE
15
TRANSCRIPT OF PROCEEDINGS
16
VOLUME 7 of 7 - PAGES 431 - 461
17
APRIL 26, 2024
18
19 APPEARANCES:
20 FOR PLAINTIFF-RESPONDENT: JOHN ROBLES, ESQ.
21 SAN FRANCISCO DISTRICT
ATTORNEY'S OFFICE
22 350 RHODE ISLAND STREET
NORTH BUILDING, SUITE 400N
23 SAN FRANCISCO, CA 94103
24 FOR DEFENDANT-APPELLANT: AMY TAO, ESQ.
25 SAN FRANCISCO PUBLIC DEFENDER
555 7TH STREET
26 SAN FRANCISCO, CA 94103
27 TRANSCRIBED BY: ALEX J. PARKER
28

IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

BEFORE THE HONORABLE BRADEN C. WOODS, JUDGE

DEPARTMENT 502

-o0o-

PEOPLE OF THE STATE OF CALIFORNIA, People, vs. ANDREW ENRIQUEZ, Defendant.	))))))))))	CASE NO. 22014337

TRANSCRIPT OF PROCEEDINGS

SENTENCING

VOLUME 7 OF 7 - PAGES 431 - 461

APRIL 26, 2024

APPEARANCES:

FOR THE PEOPLE: JOHN ROBLES, ESQ.
San Francisco District Attorney's Office
350 Rhode Island Street
North Building, Suite 400N
San Francisco, CA 94103

FOR THE DEFENDANT: AMY TAO, ESQ.
San Francisco Public Defender's Office
555 7th Street
San Francisco, CA 94103

TRANSCRIBED BY: ALEX J. PARKER

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-o0o-

1 SAN FRANCISCO, CALIFORNIA - FRIDAY, 26 APRIL 2024
2 MORNING SESSION
3 (PROCEEDINGS IN OPEN COURT)
4 (Call to order at 8:33 a.m.)
5 THE COURT: Going on the record. People of the
6 State of California vs. Mr. Andrew Enriquez, case number
7 22014337. Matter on calendar today for sentencing.
8 Counsel, your appearances, please.
9 Yours, sir?
10 MR. ROBLES: John Robles for the People.
11 THE COURT: Ma'am?
12 MS. TAO: Amy Tao, Deputy Public Defender, on behalf
13 of Andrew Enriquez, who is present.
14 THE COURT: Court is ready to consider the following
15 information: the Defense sentencing memo, exhibits in support
16 of Defense sentencing memo, motion for stay of sentencing
17 pursuant to Penal Code Section 1050, and for stay of probation
18 conditions pending appeal pursuant to Penal Code Section 1272
19 in the case In RE: Bakke -- B-A-K-K-E -- or Bakke.
20 MS. TAO: And, Your Honor, before we move forward
21 with that, I'd also like to make an oral new trial motion.
22 THE COURT: Is there such a thing?
23 MS. TAO: Yes. And it is required to be heard
24 before sentencing.
25 THE COURT: Isn't it required to be in writing?
26 MS. TAO: No.
27 THE COURT: Okay. All right. Go ahead.
28 MS. TAO: Okay. So we are moving for a new trial

1 motion. First, the Court has broad discretion. There is a
2 presumption of prejudice raised once the Defendant identifies
3 a valid ground which -- to grant a new trial. Once the valid
4 grounds for a new trial can be identified, a court must grant
5 a new trial unless the Prosecution can rebut the presumption
6 of prejudice.
7 So, first, I want to bring up insufficient evidence
8 to find Mr. Andrew Enriquez guilty. So there -- the Court
9 must make an independent review. The trial court is not bound
10 by the jury's decision as to conflicts in evidence or
11 inferences to be drawn therefrom. And it is the duty to give
12 the Defendant the benefit of its independent conclusions as to
13 sufficiency of credible evidence to support the verdict.
14 So here, it is largely based on circumstantial
15 evidence. Officer Lanza did not see Mr. Enriquez driving the
16 vehicle personally. She only saw a vehicle stop, and she was
17 also in the middle of doing another stop at the time with
18 another vehicle. It is unclear, based on the testimony,
19 whether she was aware -- there were some points that were
20 contradictory. The other officer was not present, so it is
21 largely reliant on circumstantial evidence.
22 And I would also note that there is juror
23 misconduct. So a motion for a new trial should be granted
24 when the jury received evidence outside of court. When a
25 juror receives information related to the case outside of the
26 courtroom and then shares that information with the other
27 jurors in the deliberation room, the Defendant is deprived of
28 his or her Constitutional right to confront and cross-examine

1 witnesses. It is improper for a juror to introduce, in
2 deliberative process, an opinion based on specialized
3 information or outside sources, rather than the evidence
4 presented at trial.
5 So when speaking with jurors, there was mention that
6 two jurors had the same vehicle, a Lexus sedan, and because
7 they had that vehicle, they felt that it would have been
8 difficult for someone to move around within it. They knew the
9 size of it. Another juror mentioned he was surprised there
10 were other jurors with that same vehicle. So that's outside
11 information that impacted their decision. Those jurors shared
12 that information with the other jurors in the room.
13 And also, lastly, I would note that there was a
14 juror that was excused, Juror Number 9. So he was the one
15 that had brought up that he was gay, that he did not have
16 trust of law enforcement. So a prosecutor's use of peremptory
17 challenge based on a prospective juror's previous negative
18 experiences with law enforcement is presumptively invalid.
19 So looking at Penal Code Section 231.7, sexual
20 orientation is a protected class. And under Section (e),
21 peremptory challenge for the following reasons is invalid
22 unless the party exercising the challenge can show by clear
23 and convincing evidence that an objectively reasonable person
24 would view the rationale as unrelated to a prospective juror's
25 race, ethnicity -- includes sexual orientation.
26 And the first one is expressing distrust or having a
27 negative experience with law enforcement or the criminal legal
28 system. So here, he discussed that he did have family that --

a brother and a father who was law enforcement, and that they didn't approve of him and his partner. And that --

THE COURT: That they --

MS. TAO: -- was --

THE COURT: That they what?

MS. TAO: Disapproved of him and his partner.

THE COURT: Um-hum.

MS. TAO: And when I objected to that juror being excused, that was also -- a reason later provided on the record was that there was distrust of law enforcement.

So I'll submit on those, and I'm happy to provide further context to any of those points.

THE COURT: Any response, Mr. Robles?

MR. ROBLES: Sure, Your -- yes, Your Honor.

So there's three points that Ms. Tao raised. The first one is regarding the circumstantial evidence. I mean, yes, most cases are decided by circumstantial evidence. There's enough facts to show that Officer Lanza approached the vehicle within seconds and saw Mr. Enriquez in the driver's seat. And it is true both officers did not see the driving. But based on circumstantial evidence, 12 independent jurors came to the conclusion that Mr. Enriquez was driving that night.

The second argument from Defense was that two jurors had the same car. Well, that's true. I mean, the car was stated in the facts. It was an -- it was a -- I'm forgetting the model right now, Your Honor, but it was a Lexus car. Most people are aware of a Lexus.

1 THE COURT: Please continue. We just may have a
2 different clerk log into Zoom --
3 THE CLERK: Yes.
4 THE COURT: -- but you have my undivided attention.
5 Please continue.
6 MR. ROBLES: I mean -- yes. Thank you, Your Honor.
7 And at the same time, I did raise the same argument
8 that a small car like that is hard to be moving around, and so
9 that's not new evidence being brought forward.
10 Towards the third point regarding Juror Number 9,
11 just because he is gay is not the -- I mean, that's just
12 completely laughable. There's other jurors that were gay and
13 were not excused based on their answers. The reason why he
14 was excused was because he said he didn't hold officers to the
15 same credibility as other witnesses. Based on that, it was --
16 I struck that juror based -- because he said that he would not
17 hold officers to the same credibility as other people who took
18 the stand. And when other jurors that were gay said that they
19 would hold officers to the same standard, that was a perfect
20 answer. And that's all we wanted -- to hold people to the
21 same standard of credibility when they took the stand.
22 MS. TAO: If I could briefly respond to that?
23 THE COURT: Well, I don't know if he was done,
24 Counsel.
25 MS. TAO: It'd be very, very brief. Just if --
26 THE COURT: No. I don't know if he was done.
27 You're cutting him --
28 MS. TAO: Oh, sorry.

1 THE COURT: -- off. You're cutting him off.
2 MS. TAO: I'm sorry.
3 MR. ROBLES: I think I'm done as of now, Your Honor.
4 THE COURT: All right. Ms. Tao?
5 MS. TAO: So as to the second point with outside
6 knowledge, this isn't new evidence. It's information that
7 jurors brought from outside -- their personal knowledge of how
8 this vehicle would work, the size of it. There's different
9 sized sedans, and for them to specifically say they have this
10 type of vehicle -- and that they would know moving around in
11 that size vehicle would be difficult for that model.
12 ADA Robles was outside as well, and he heard the
13 jurors saying they had that vehicle. That was one of the
14 points mentioned, and all the jurors were aware because they
15 had discussed it. And that was a large point of why they
16 found Mr. Enriquez guilty.
17 And as to the third point, it's not just that
18 they're holding an officer to a different credibility
19 standard. That directly relates to Section (e)(1) of
20 expressing distrust of law enforcement. That basically means
21 they hold -- that credibility is different.
22 And it's not whether -- how many jurors are left
23 that are also gay. It's more about that specific juror's
24 distrust of law enforcement and how it relates to their
25 personal experience. There are no other bases provided as to
26 why that juror was excused. And there was no for cause
27 challenge granted as to that, so that was a peremptory
28 challenge. And the remedy is -- for a new trial.

1 MR. ROBLES: Well, Your Honor, I do believe I did
2 ask for a good cause on --
3 THE COURT: Anything else, Ms. Tao?
4 MS. TAO: Submitted.
5 THE COURT: All right. All right. The Court has
6 already considered the sentencing memo provided by the
7 District Attorney's Office regarding the motion for new trial.
8 The motion is denied.
9 Number one, the Court independently -- even though
10 I'm not supposed to act as a, quote, 13th juror, the Court can
11 find that a reasonable jury of 12 could find sufficient
12 evidence to convict the gentleman on all the charges and all
13 the allegations in this particular case.
14 Two, juror misconduct is denied for two reasons.
15 One, juror misconduct requires declarations. I don't think it
16 can just be an oral representation. So the request for a
17 finding of juror misconduct is also denied.
18 But on the merits, if I can just accept the oral
19 representation, the fact that somebody has a car similar or
20 actually the same as in this particular case is not juror
21 misconduct. That's like saying I have a pair of Nikes and
22 Nikes are somehow relevant in the case, or it somehow comes
23 out -- just because you have the same car or same clothing or
24 same item that's discussed in evidence is not juror
25 misconduct. So it's also denied.
26 The Court stands by the record made at the time that
27 the peremptory challenge is CCP 231.7, not penal code. And we
28 already discussed that on the record. We made a record about

1 that, and I made findings about that. So I don't need to re-
2 discuss that. So, overall, the motion for a new trial is
3 denied.
4 Ms. Tao, would you like to inquire, first, regarding
5 your request for stay of the proceedings and/or a stay of
6 probation conditions?
7 MS. TAO: Yes. So we have had a delay of hundreds
8 of cases -- a thousand -- due to COVID-19 and the Court's good
9 cause orders. In the past several months, we have been filing
10 1382 motions as to those speedy trial delays. And those have
11 been filed, and the Court of Appeal is responding with stays
12 on jury trials so that they can make a finding as to whether
13 the court's good cause orders are valid. And --
14 THE COURT: Can I pause you for a second? You said
15 plural. To my knowledge, there's only one case, Mendoza
16 (phonetic), and you said there's multiple cases. Is there an
17 update that you have for the Court?
18 MS. TAO: Yes. So we have stays pending the
19 decision of Mendoza. So we filed numerous writs. And we now
20 have nine so far. They've been coming in the last two weeks
21 because it did take some time for it to get through that
22 process.
23 THE COURT: And give me --
24 MS. TAO: And --
25 THE COURT: -- one case number of a Court of --
26 MS. TAO: I do have a --
27 THE COURT: -- Appeal case that is stated.
28 MS. TAO: Yes. I do have a case number. Michael

1 Bonner (phonetic) -- that's my other case -- is -- one second.
2 Let me take -- actually, I have the exact case number. I
3 apologize.
4 THE COURT: I'm looking for the A --
5 MS. TAO: Okay.
6 THE COURT: -- number.
7 MS. TAO: So it's 0 -- oh.
8 THE COURT: I'm looking for the A number. That's
9 the Court of Appeal number.
10 MS. TAO: Okay. So it's A170183.
11 THE COURT: This is a case pending trial, correct?
12 Not a case that's already been to trial?
13 MS. TAO: Correct. However, if it was found that
14 these are violations, then the fact that this case has gone to
15 trial -- it would just go through the appeal process and
16 further resources that -- I understand, of course, the value
17 of resources. And to then appeal the following sentencing
18 would be the next course of action if these speedy trial
19 rights were delayed.
20 And I did note, in my motion, all the delays of Mr.
21 Enriquez's trial dates. So it would make the most sense for
22 the sentencing to be delayed until there is a finding from the
23 Court of Appeal as to whether these rights were violated.
24 THE COURT: Wasn't our finding in 2023?
25 MS. TAO: However, there are -- there's a current
26 case right now that we're waiting for with Mendoza. So that
27 is the most updated case that the court is -- Court of Appeal
28 is still deciding on.

1 Additionally, we would have done this before trial;
2 however, Department 17 has refused to hear our speedy trial
3 motions until, generally, right before we're sent out to
4 trial. So they denied it the day that we were sent out. As
5 soon as it's denied, we file the writ, and then we can get a
6 response fairly soon after. But by not ruling on my motion
7 until the day we were sent out, it means that we now have to
8 do this following the trial.
9 And also, as I mentioned in the motion, Your Honor
10 would still have jurisdiction. There would be no -- there's
11 no negative consequences to waiting to see what is the correct
12 course of action, legally, to proceed. Your Honor could still
13 impose probation or other terms, at a later date, once we have
14 that response. We -- it shouldn't be too much longer. We've
15 already been -- I understand I don't know how long the Court
16 of Appeal will take, but it's been ongoing. So given that, I
17 think to delay at least two to three months would make the
18 most sense.
19 THE COURT: Ms. Tao?
20 MS. TAO: If Your Honor has any additional points I
21 could clarify or if Your Honor has any questions, I'm happy to
22 provide more details, but I think it is detailed in the
23 motion.
24 THE COURT: Mr. Robles?
25 MR. ROBLES: I want to pull up the minute orders
26 from the day that we got sent out because I believe that Judge
27 Wong denied the 1382 before we got sent out, but I'm not too
28 sure. That's why I'm going to pull up the minute orders to

1 make sure that's an accurate statement, Your Honor.
2 (Pause)
3 MS. TAO: While ADA Robles is looking at that, I
4 would also note that I do think -- I do think the alleged
5 violation of the -- of his speedy trial rights is particularly
6 important in this case. Part of what was brought up was why
7 didn't Mr. Enriquez say anything in the last -- over a year?
8 And he has been trying to go to trial for quite some time.
9 And we have been declaring ready, and it's -- and
10 it -- I know that our motions detail this further as to the
11 cause orders and why they are -- they continued past when
12 emergency orders had ended for the city, and how that has
13 impacted people because of it. So I think the importance of
14 this issue and ongoing litigation, it just -- it should be
15 delayed until we have that finding.
16 MR. ROBLES: Sorry, Your Honor. The internet is not
17 helping me out right now. I saw that there was a 1382 motion
18 filed by Defense. I'm assuming, since we got sent out to the
19 courtroom, that Judge Wong denied the motion as well.
20 THE COURT: Okay. Anything else, sir?
21 MR. ROBLES: Submitted, Your Honor.
22 THE COURT: I mean -- but I don't know what your
23 position is.
24 MR. ROBLES: Well, if Judge Wong denied the motion,
25 then we stand by his denial of the motion.
26 THE COURT: So are you requesting the Court to go
27 forward?
28 MR. ROBLES: Yes, Your Honor, unless you want to

1 provide a new ruling on their motion.
2 MS. TAO: Well, Your Honor, that's not what we're
3 asking for. We're asking for a stay on the sentencing, so we
4 can get a decision from the Court of Appeal and then act
5 accordingly.
6 MR. ROBLES: I will submit on your discretion, Your
7 Honor.
8 THE COURT: Any final comments on your motion, Ms.
9 Tao?
10 MS. TAO: No. Submitted.
11 THE COURT: Okay. The Court has already considered
12 the motion and considered the arguments of counsel -- already
13 considered the case cited as well as the Penal Code section
14 cited. The Court also already considered the cites for 1272
15 of the Penal Code. Looked at 1243, California Rules of Court
16 8.854, and all the sort of surrounding Code sections and
17 California Rule of Court sections involving stays, appeals, et
18 cetera, et cetera.
19 Number one, on his current record, the Court does
20 not find good cause to continue the sentencing. It's
21 insufficient basis to say it's about COVID or -- there's no
22 nexus that's been presented to the Court that the facts and
23 circumstances of the Mendoza case or the Bonner case cited to
24 the Court this morning are the same facts and circumstances as
25 this particular case. Just saying COVID and last day, not
26 good cause, is insufficient.
27 Number two, we actually have a case that's decided
28 this issue, Estrada, a 2023 case where the writs were denied

about COVID last days, and it's actually a published case. So it doesn't have a published cite yet, but the Estrada case vs. San Francisco Superior Court can be found at A166474.

It also had a companion case of K-U-H-A-I-K-I, case number A166508. And as stated, this was ordered published by the Court of Appeal, 1st DCA, Division 1. So that's actually the binding law on the Court at this point in time, which indicated in 2023 that the orders were fine.

So one, no good cause to continue the matter. Number two, the Estrada case; the published matter is the case the Court has to follow since it's from the DCA.

Three, pursuant to Vehicle Code Section 23600, Subdivision A, that states in summary as follows: if a person is convicted of a violation of Vehicle Code Section 23152, the Court shall not stay or suspend pronouncement of sentencing and shall pronounce sentence in conjunction with the conviction in a reasonable time. The request to go out two to three months is not a reasonable time period -- especially since it's a writ, and who knows when and if the DCA will rule in the matter. And I don't even know if the facts and circumstances of the Mendoza case or the Bonner case are the same as these.

So when the Court takes all those things into conjunction, the request for a continuance is denied. Request of the stay of proceedings is also denied. A request for stay of probation conditions is also denied. There's one condition I'll probably delay a little bit, but it will be imposed.

After citing all the cases and strata and the

1 Vehicle Code Section 23600, if there's something I've missed
2 and the Court has discretion, then the Court declines to
3 exercise that discretion in this particular case under these
4 particular circumstances. So all the requests in the Defense
5 motion to stay and/or continue are denied.
6 Okay. As stated, I've read the People's sentencing
7 memo. Defense sent a memo. Considered Defense exhibits in
8 support of the memo. Read and considered the character-slash-
9 reference letters provided in the exhibit section. Also
10 considered the pictures of the gentleman -- the gentleman
11 being the Defendant, Mr. Enriquez -- with -- appears to be
12 family members. So I've already considered those, and I've
13 looked at those also.
14 Ms. Tao, is formal arraignment for judgment and
15 sentencing waived?
16 MS. TAO: Yes.
17 THE COURT: Is there any legal cause why judgment
18 should not now be imposed?
19 MS. TAO: No.
20 THE COURT: Mr. Robles, I'll hear from you first,
21 sir. I did have a brief question. You cite to 23536. As I
22 read that Code, that's the no probation section, but you're
23 recommending probation. And my understanding of the Code is
24 if you're recommending probation, then it's Vehicle Code
25 Section 23538.
26 MR. ROBLES: I apologize, Your Honor. That is
27 correct. Probation should be -- find.
28 THE COURT: Okay.

1 MR. ROBLES: Yes.
2 THE COURT: All right.
3 MR. ROBLES: My apologies.
4 THE COURT: That's all right. We're all learning.
5 Just trying to figure it out. All right. Your
6 recommendations on page 3 -- I don't see that includes a DUI
7 first offender program. Is -- are the People not recommending
8 that?
9 MR. ROBLES: No, Your Honor. The People are --
10 THE COURT: I just see 3 years' probation, 96 hours
11 county jail servable through SWAP, fines and fees, and a
12 license suspension. Was there anything else that you feel is
13 appropriate that you did not include in your moving papers?
14 MR. ROBLES: Yes. The first offender's program, if
15 that has not yet been completed, and the Mothers Against Drunk
16 Driving, Your Honor.
17 THE COURT: That's the victim impact class?
18 MR. ROBLES: Yes.
19 THE COURT: Okay. Got it. All right.
20 Ms. Tao, happy to hear from you. I saw your
21 recommendation is on page 4 of your moving papers, lines 19
22 through 25. Anything you want to add or emphasize in terms of
23 your moving papers or anything about the gentleman?
24 MS. TAO: I think I have detailed sufficiently in my
25 memo. I would note, again, that Mr. Enriquez has no criminal
26 history at all. He has letters detailing his high character.
27 And previous to trial, we had received an offer of a
28 wet reckless. And the terms are stated in the memo, which is

1 generally one year of court probation, a three-month first
2 offender program, MADD, fines and fees. And there should not
3 be a tax simply on taking out the case to trial.
4 So I would ask for the minimum. Given the facts of
5 this case, I believe that it is more than sufficient to do
6 three years of court probation with credit time served of one
7 day, the three-month first offender DUI program, MADD impact
8 panel. And as for the fines and fees, I can make my Duenas
9 motion after.
10 THE COURT: Go ahead.
11 MS. TAO: For Duenas?
12 THE COURT: Yes.
13 MS. TAO: So Mr. Enriquez -- what he makes monthly
14 after taxes is 2,300. His rent is 1,795, and his other
15 monthly expenses are at least $450. He also has student loans
16 of $20,000, credit card debt of 300, and he still owes IRS
17 2,000. He has less than 1,000 in savings right now. He is
18 quite -- it's quite difficult for him financially. And I
19 don't believe there's any way for him to afford the fines and
20 fees of this -- of -- for a DUI.
21 And I would ask you -- with Duenes, we have been --
22 we have had all the fines and fees waived for circumstances
23 that are not even as dire as his, financially. So -- and I
24 can provide any additional information, if Your Honor would
25 like, regarding his expenses if Your -- Your Honor sees that
26 there's nothing left and there's still quite a bit of debt.
27 So I would just ask that all fines and fees be waived.
28 MR. ROBLES: If I may, Your Honor?

1 THE COURT: Briefly.
2 MR. ROBLES: I just want to clarify, for the record,
3 about the offer. It is true that it was given, but these were
4 the steps first. At first, Ms. Tao asked for the allegations
5 to be stricken. Ms. Brooks did that as a condition, so the
6 offer would have been plea to the first. Then, Ms. Tao asked
7 if she would come down to a wet. Ms. Brooks said yes, if
8 there's mitigation. I believe mitigation was shown. Then,
9 the new offer became a wet. Then, when I took on the case and
10 I came here, Ms. Tao said that she would only accept a dry
11 offer.
12 So at each step, she's been -- we've been trying to
13 resolve this case with Ms. Tao, with the Defense, but each
14 time we made a new offer, they wanted a new one beyond that.
15 So just saying that a wet was offered is not as accurate as to
16 say that we've been through steps trying to resolve this case.
17 THE COURT: If someone -- since the offer was a wet,
18 he only wanted a dry, and he's been convicted of DUI. The
19 Court made -- and the offer, as I read it in the moving
20 papers, was charged bargaining only, and the sentence was
21 going to be left up to the judge.
22 Since the parties were so far apart from one
23 another, I didn't seek any additional information, provided
24 none indicated, and didn't provide any thoughts or comments on
25 the case. Since the parties were so far apart, there was no
26 way for the Court to resolve it. So the Court did not engage
27 any type of plea bargaining or offers or indicated or anything
28 of that nature.

SENTENCING

Sir -- Mr. Enriquez, after a jury verdict, it is the judgment of this Court that you be sentenced as follows.

On the offense of Count II, a violation of Vehicle Code Section 23152, subdivision B, driving with a 0.08 percent or higher blood alcohol level, as well as the allegation that was found to be true by the jury under Vehicle Code Section 23578, you will be sentenced on Count II.

On the offense of Count I, a violation of Vehicle Code Section 23152, subdivision A, DUI -- as well as the allegation attached to that particular count, 23578 -- you'll be sentenced by the Court, but that sentence will be stayed pursuant to Penal Code Section 654. It will be the same sentence, but it will be stayed.

On Count III on the offense, you're convicted of a violation of Vehicle Code Section 12500, driving without a valid license. You'll be sentenced on that count, but that count will run concurrent to the sentence on Count II. 654 does not apply since they are different offenses, different acts. So Count II will be stayed, 654. Count III will run concurrent.

On Count II, the 23152, subdivision B, and the allegation you'll be sentenced as follows. In terms of the sentence, the Court has reread and considered California Rule of Court 4.4110 that talks about the general objectives in sentencing. The ones that apply in this particular case are subdivision (a) -- (1), (2), (3), and (4) in particular.

Under that section, the general objectives of

1 sentencing include: one, protecting society; two, punishing
2 the defendant; three, encouraging the defendant to lead a law-
3 abiding life in the future and deterring him or her from
4 future offenses; and four, deterring others from criminal
5 conduct by demonstrating his consequences. While during the
6 course of a trial it is irrelevant -- talking about societal
7 and punishment and DUI, things of that nature -- when it comes
8 to sentencing, the Court must consider that.
9 The Court's also reread and considered Penal Code
10 Section 1170. That also details sentencing. In this
11 particular case, the Court will impose a sentence because --
12 not in particular, but also taking into account the
13 enhancement found to be true by the jury in this particular
14 case.
15 There's no such thing as a standard DUI first, but
16 this case is not one we, quote, typically see where the person
17 is maybe a 0.08, a 0.10, maybe a 0.12. This is one of those
18 rare cases where it's actually the allegation has kicked in
19 over 0.15 percent. This case will not be -- and should not --
20 be sentenced as a, quote, standard first or purely -- you look
21 at the terms and conditions of the statute the Court has to
22 incorporate -- and should incorporate -- Vehicle Code Section
23 23538, subdivision A, paragraph 1. The Court also must
24 incorporate Vehicle Code Section 23578 because the 0.15
25 allegation was found to be true.
26 The legislature has recognized the seriousness,
27 scariness, dangerousness of being over a 0.15 percent. And
28 what makes this case particularly, dare I say, egregious, is

1 that it was a 0.20 -- closer to triple the legal limit than
2 closer to double the legal limit. California lawmakers also
3 understand that the risk of causing an accident increases with
4 the higher blood alcohol level. Luckily, that did not happen
5 in this case.
6 As an effort to try and reduce the risk of accidents
7 by drivers with high BACs, the legislature has introduced
8 higher penalties for drivers who operate a car with a blood
9 alcohol content of 0.15 percent or higher. The BAC at 0.15
10 percent is twice the legal limit, which means chances of
11 crashes are highly and very likely to occur because you cannot
12 possibly make good decisions when you're 0.15, as opposed to
13 be driving when you're sober.
14 Based upon the facts and evidence in this case, the
15 expert opined, based upon her training and experience, that
16 Mr. Enriquez had seven to nine alcoholic drinks on board in
17 his system when he was driving on a public street in the area
18 of the Temple club, then onto a freeway, onto the Bay bridge,
19 and was driving in a car with five friends. Obviously, the
20 friends have to take some responsibility for their actions of
21 getting in that car and letting the gentleman drive them. He
22 has the ultimate responsibility as the person who's driving
23 the car.
24 So, sir, the Court is going to sentence you as
25 follows. Imposition of sentence is suspended. The Court is
26 placing you on three years of court probation under the
27 following terms and conditions. You must serve ten days in
28 the county jail with one day credit for time served. The

1 balance of that sentence is servable through SWAP, the
2 Sheriff's Work Alternative Program. You are Penal Code
3 Section 4019 eligible.
4 Regardless to your counsel's request for stay, the
5 best I will do is you must report to SWAP no later than July
6 1, 2024. Normally, the Court would order you to go there
7 within two weeks, maybe a month tops. But I'll give you a
8 little more time in case, somehow, the writ impacts on this
9 case. Your attorney will have time to bring it back to court
10 if there is, in fact, a nexus. But you don't hear any word,
11 nothing changes, you must report to the sheriff's department
12 no later than July 1, 2024, to begin your SWAP service. If
13 you do not, they will issue a warrant for your arrest, and you
14 will serve the balance of the ten days in the county jail. As
15 stated, you are Penal Code Section 4019 eligible.
16 Other terms and conditions of probation, sir, are as
17 follows. You shall enroll and successfully complete a three-
18 month licensed first offender alcohol and drug education
19 program. You're hereby advised that DMV will impose a minimum
20 of a six-month license suspension. You're hereby advised that
21 your driving privilege will not be restored until proof of
22 successful completion of the first offender program is
23 received at DMV headquarters.
24 You shall not drive without a valid California
25 driver's license in your possession and proof of insurance.
26 You shall not drive with any measurable amount of alcohol
27 and/or drugs in your system. You shall not refuse any
28 chemical test requested by any peace or probation officer.

1 I have considered the arguments made by your
2 counsel. The Court is ordering the following in terms of
3 fines and fees. You shall pay a DUI base fine of $390, plus
4 penalties and assessments of $1,130.61, for a total of
5 $1,520.61. I will stay the penalties and assessments. The
6 penalty and assessments is 1,130.61 -- that is stayed.
7 However, you are ordered to pay the DUI base fine of $390.
8 You must successfully complete the MADD Victim
9 Impact Panel class. You shall obey all laws.
10 In terms of other fines and fees, based upon this
11 record as required by the Code, the Court must find compelling
12 and extraordinary reasons for not imposing these following
13 fines and fees. I have considered the arguments of Ms. Tao,
14 and the Court does not find compelling and extraordinary
15 reasons, so you must pay the following fines and fees.
16 A $150 restitution fund fine per count -- on Count I
17 and Count III, those are stayed. You only have to pay the one
18 where the Court is imposing sentence, which is Count II.
19 You must pay a $150 probation revocation restitution
20 fund fine, which is paid successfully -- pending successful
21 completion of probation. That's per count, but it only
22 applies -- you only have to pay on Count II, because Count I
23 and III are being stayed and/or 654'ed. You don't have to pay
24 it a second and/or third time.
25 You must pay a $40 court operation assessment or $30
26 immediate critical need assessment. That's also per count,
27 but the Court is only imposing it one time.
28 Sir, you're hereby advised that being under the

1 influence of alcohol or drugs or both impairs your ability to
2 safely operate a motor vehicle. Therefore, it is extremely
3 dangerous to human life to drive while under the influence of
4 alcohol or drugs or both. If you continue to drive while
5 under the influence of alcohol or drugs or both, and as a
6 result of that driving someone is killed, you can be charged
7 with murder. You understand, sir?
8 THE DEFENDANT: Yes.
9 THE COURT: And I did tell you that at the time
10 after your conviction. So I do have to remind you of that a
11 second time.
12 The record, in the minutes, will reflect that the
13 Defendant has been advised, pursuant to Vehicle Code Section
14 23593, also known as the Watson -- W-A-T-S-O-N --
15 admonishment.
16 Sir, you're ordered to go to the collections unit,
17 Room 101, to make arrangements to pay the fines and fees. You
18 must do that no later than -- today is Friday -- no later than
19 Wednesday, May 1, 2024. You have to fill out some paperwork,
20 but you need to do that. If you're in the area today, you can
21 get to the Hall of Justice at 850 Bryant Street, Room 101,
22 take care of it -- but you must do it no later than close of
23 business May 1, 2024.
24 Sir, are you willing accept your sentence and the
25 terms and conditions of your probation as the Court has
26 explained to you here today?
27 THE DEFENDANT: Yes.
28 THE COURT: All right. Sir, it's also my duty, at

1 this time, to advise you of your appeal rights. You have the
2 absolute right to appeal in the judgment of this Court in
3 imposing sentence on you today.
4 That means if you wish to appeal, you must file a
5 written notice of your intention to appeal within 30 days from
6 today. An appeal not filed within 30 days shall be void and
7 of no effect. This notice must be in writing and signed by
8 you or your attorney, or both of you. It must specify what
9 you're appealing from, whether it is the whole judgment or
10 just part of the judgment.
11 If you appeal and do not have the financial ability
12 to retain services of an attorney to represent you on appeal,
13 the appellate authorities will appoint counsel to represent
14 you. In that regard, it is your obligation, sir, to keep the
15 appellate authorities advised at all times of your current
16 residential address so that they can be in touch with you to
17 advise you of your appointed counsel. You understand, sir?
18 THE DEFENDANT: Yes.
19 THE COURT: All right. The Court is going to give
20 you the Sheriff's Work Alternative form. My bailiff will give
21 it to you. Please confirm your address and date of birth on
22 that at the very top, then sign it at the bottom. Then, I
23 will sign it and provide you a copy to remind you of the date
24 that you have to report. So confirm your address, DOB, are
25 all correct, sir, for me -- and your phone number.
26 THE DEFENDANT: Oh, I just forgot the apartment
27 number on the -- on the street address.
28 THE COURT: What's the -- what is it, sir?

THE DEFENDANT: 18.

THE CLERK: Should I write it in?

THE COURT: If you want, I'll do it because I have to sign it also, so -- okay.

All right. Do you understand that, sir? And you see at the bottom -- I'll write in 7/1/2024. We'll give you a copy to help you remember. If you understand that, please sign it at the very bottom, sir.

THE DEFENDANT: All right.

THE COURT: Where it's -- has your portion. And I -- sorry, is that a felt pen, or is that a hard point pen?

MS. TAO: Oh. It is -- I think it might be a felt pen -- oh, it's going --

THE COURT: It went through?

MS. TAO: Yeah. It's going through.

THE COURT: Okay, cool. Thank you.

THE DEFENDANT: All right.

THE COURT: Deputy, can I have that, please?

MS. TAO: And the apartment number is not on there yet.

THE COURT: I'll put it on. Thank you. Appreciate it.

For the record, under 16th Street, I put the number -- hashtag symbol and the number 18 -- 1-8. Gentleman has signed in the appropriate location, dated it today. The Court has also done the same.

Court clerk will sign it, and then, we will give the gentleman a bottom copy, please, after the clerk signs it.

1 MS. TAO: And while we're waiting for that, if I
2 could bring up the six-month license suspension. So I wanted
3 to clarify that that's up to the -- the DMV imposes that. But
4 they've -- if they've already imposed it, then it shouldn't be
5 another six months. This case is quite old. It's from 2022.
6 And as I've stated, he's been trying to go to trial
7 on this, so I don't want him to be punished a second time just
8 because of the delays. So I was hoping it'd be made clear
9 either in the minutes or to specify that it is not to be
10 reimposed if it's already been imposed by the DMV, because
11 since then there's been no incidents. And also, the only
12 reason it wasn't -- this hasn't been done sooner is because of
13 the delays.
14 THE COURT: The statute is the statute. He's just
15 advised that DMV will impose a minimum of a six-month
16 suspension. It's not six months from the date of trial. It's
17 usually six months from the date of incident, but I don't have
18 any control over DMV. Your point is well taken, but I don't
19 know if DMV held off, so that's why I can't add anything to
20 the minutes and orders to, quote, clarify.
21 When they get the documentation of the conviction,
22 they look. And if they've already imposed the six months,
23 then it's done. If they have not, then they'll have to do
24 that. But I don't think there's anything to, quote, clarify
25 that I can put in the minutes and orders. The statute is
26 clear -- 23538, 23536, and sort of 13352. I don't think
27 that's quite as clear, but -- anyway.
28 MS. TAO: We've just had this issue before because

1 all the DMV -- all they get are the codes, and they just input
2 the codes, and that's really it. So you -- my -- the other
3 case where it had also been past a year, things were being
4 reimposed. And I know the six-month suspension is a little
5 different than things like the first offender program.
6 THE COURT: Um-hum.
7 MS. TAO: But I just -- that was my concern.
8 THE COURT: You'll have to take it up with DMV
9 because there's nothing -- we don't have any control over DMV.
10 We don't have access to their system to put anything into it.
11 So, unfortunately, that would have to be an issue you'd have
12 to take up with Department of Motor Vehicles.
13 All right. Mr. --
14 MR. ROBLES: Robles.
15 THE COURT: Sorry. I'm bad with names. Mr. Robles,
16 anything else?
17 MR. ROBLES: No, Your Honor, thank you.
18 THE COURT: Ms. Tao, anything else?
19 MS. TAO: No.
20 THE COURT: Okay, thank you.
21 The matter's concluded. Good luck to you, sir.
22 THE DEFENDANT: Thank you, Your Honor.
23 MS. TAO: Thank you.
24 (Proceedings concluded at 9:46 a.m.)
25
26
27
28

CERTIFICATION

I, ALEX J. PARKER, a court-approved transcriber, do hereby certify that the foregoing transcript of the Matter of People Of The State Of California, Plaintiff-Respondent, vs. Andrew Enriquez, Defendant-Appellant, case number 22014337, heard April 26, 2024, pages 431 through 461, is a correct transcript from the official electronic sound recording of the proceedings in the above entitled matter, to the best of my professional skills and abilities.

_____
Alex J. Parker, CDLT-330
June 5, 2024
Digital Court Transcriber

EXHIBIT J

Minute order (Apr. 26, 2024)

San Francisco Criminal Court
Minute Order

Case Title	The People v. ENRIQUEZ	**Department**	Department 502
Case Number	CRI-22014337	**Judge**	Braden C Woods
Hearing Type	Sentencing Hearing	**Hearing Date**	04-26-2024 09:00 AM
Clerk	C. Balanga, C. Karadi	**Court Reporter**	T. Proceeding are Recorded in FTR
Interpreter		**Court Officer**	

Appearance ANDREW D ENRIQUEZ (Defendant) present.

Count	Statute	Offense Type	Preparatory Offense	Degree	Plea	Disposition
1	23152(a) VC/M	Misdemeanor			Not Guilty	Sentence Stayed, Pursuant to 654PC
2	23152(b) VC/M	Misdemeanor			Not Guilty	Guilty (Conviction)
3	12500(a) VC/M	Misdemeanor			Not Guilty	Guilty (Conviction)

Add Party Special Appearance JOHN ROBLES making special appearance for The People of the State of California's attorney of record.

Add Party Special Appearance AMY TAO making special appearance for ANDREW D ENRIQUEZ's attorney of record.

Filing Oral Motion for a New Trial submitted by ANDREW D ENRIQUEZ.
Oral Motion to continue today's sentencing hearing submitted by ANDREW D ENRIQUEZ.

Outcome Motion - New Trial is Denied.
Motion - Motion to continue today'ss entencing hearing is Denied.

Filing Filed Sentencing Memorandum submitted by The People of the State of California.

Set Disposition Sentence on count(s) 1, 1E1 stayed, pursuant to Penal Code 654. Court states reason.

Sentencing Imposition of Sentence Suspended - DUI 1st Offense Misdemeanor sentence created, set to Imposed.

Confinement:
Count 1 - 10 days at San Francisco County Jail, set as Satisfied. Report date set to 07/01/2024. Credit for Time Served recorded as 1 day. Stayed PC 654
Count 2 - 10 days at San Francisco County Jail, set as Active. Report date set to 07/01/2024. Credit for Time Served recorded as 1 day.
Count 3 - 10 days at San Francisco County Jail, set as Satisfied. Report date set to 07/01/2024. Credit for Time Served recorded as 1 day. Concurrent to count 2.
The jail sentence may be served through the Sheriff's Work Alternative Program (SWAP) or Electronic Monitoring (EM). Defendant is ordered to report on 07-01-24, between 8:00 a.m. and 4:00 p.m., and shall abide by the program set forth for them by the San Francisco Sheriff's Office.

Supervision:
Count 1 - 3 years, Court, set as Active. Conditions as follows:
- Defendant advised of 6 month license suspension.
- Defendant advised license will not be restored until proof of completion of FOP received by DMV.
- Do not drive a motor vehicle with any drugs or any measurable amount of alcohol in your system.
- Do not drive without a valid California driver's license or in violation of California Vehicle licensing laws.
- Do not refuse to complete blood alcohol chemical test when offered by any peace officer with reasonable cause to do so.
- Probation sentence in count 1 is stayed pursuant to 654PC. Probation sentence in count 3 is to be served concurrent to the sentence imposed in count 2.
- Defendant accepts conditions of probation.
- Obey all laws (OAL).

Count 2 - 3 years, Court, set as Active. Conditions as follows:

- Defendant advised of 6 month license suspension.
- Defendant advised license will not be restored until proof of completion of FOP received by DMV.
- Do not drive a motor vehicle with any drugs or any measurable amount of alcohol in your system.
- Do not drive without a valid California driver's license or in violation of California Vehicle licensing laws.
- Do not refuse to complete blood alcohol chemical test when offered by any peace officer with reasonable cause to do so.
- Defendant accepts conditions of probation.
- Obey all laws (OAL).

Count 3 - 3 years, Court, set as Active. Conditions as follows:
- Do not drive a motor vehicle with any drugs or any measurable amount of alcohol in your system.
- Do not drive without a valid California driver's license or in violation of California Vehicle licensing laws.
- Do not refuse to complete blood alcohol chemical test when offered by any peace officer with reasonable cause to do so.
- Defendant accepts conditions of probation.
- Obey all laws (OAL).

Orders:
Count 1 - Imposition of Sentence Suspended.
Count 1 - Defendant is eligible for half-time credits per Penal Code Section 4019.
Count 1 - 96 days of First Offenders Program.
Count 1 - The defendant must complete one Mothers Against Drunk Driving (MADD) victim impact panel.
Count 1 - Pay a separate and additional restitution fine in the same amount as that imposed pursuant to PC 1202.4(b). This additional restitution fine shall be stayed unless the person's probation or parole or mandatory supervision or PRCS is revoked.
Count 1 - Defendant advised of Watson admonition pursuant to Vehicle Code 23593(a).
Count 2 - Imposition of Sentence Suspended.
Count 2 - Defendant is eligible for half-time credits per Penal Code Section 4019.
Count 2 - 96 days of First Offenders Program.
Count 2 - The defendant must complete one Mothers Against Drunk Driving (MADD) victim impact panel.
Count 2 - Pay a separate and additional restitution fine in the same amount as that imposed pursuant to PC 1202.4(b). This additional restitution fine shall be stayed unless the person's probation or parole or mandatory supervision or PRCS is revoked.
Count 2 - Defendant advised of Watson admonition pursuant to Vehicle Code 23593(a).
Count 3 - Imposition of Sentence Suspended.
Count 3 - Defendant is eligible for half-time credits per Penal Code Section 4019.
Count 3 - Pay a separate and additional restitution fine in the same amount as that imposed pursuant to PC 1202.4(b). This additional restitution fine shall be stayed unless the person's probation or parole or mandatory supervision or PRCS is revoked.
Count 3 - Defendant advised of Watson admonition pursuant to Vehicle Code 23593(a).

Fines/Fees:
Count 1 - DUI 390 assessed, with a suspended amount of $1,520.61.
Count 1 - Misdemeanor Restitution Fine assessed, with a suspended amount of $150.00.
Count 1 - Conviction Assessment Misdemeanor Felony assessed, with a suspended amount of $30.00.
Count 1 - Court Operations Fee assessed, with a suspended amount of $40.00.
Count 2 - DUI 390 assessed, with a suspended amount of $1,130.61. Defendant ordered to pay base fine of $390.00.
Count 2 - Misdemeanor Restitution Fine assessed.
Count 2 - Court Operations Fee assessed.
Count 2 - Conviction Assessment Misdemeanor Felony assessed.
Count 3 - Misdemeanor Restitution Fine assessed, with a suspended amount of $150.00.
Count 3 - Conviction Assessment Misdemeanor Felony assessed, with a suspended amount of $30.00.
Count 3 - Court Operations Fee assessed, with a suspended amount of $40.00.
Grand Total: $610.00

Filing Defendant is ordered to report to Collections Unit in Room 101, Hall of Justice, no later than 5-1-24. Failure to report or pay as ordered may subject you to a Civil Assessment of up to $100.

Filing The jail sentence may be served through the Sheriff's Work Alternative Program (SWAP) or Electronic Monitoring (EM). Defendant is ordered to report on 07-01-24, between 8:00 a.m. and 4:00 p.m., and shall abide by the program set forth for them by the San Francisco Sheriff's Office.

Hearing Status Status for This Hearing set to Occurred